

Bank
Bank

CASH POOLING AGREEMENT

of DATE

entered into by and between

Bank

LOC

LOC

LOC

ORG

and

Mother

LOC

LOC

("Master Account Holder")

WHEREAS the Master Account Holder wishes to use the cash pooling services of **ORG** in order to achieve a better liquidity control to reduce the overall financing costs of the Master Account Holder and certain of its affiliated companies participating in the Cash pooling agreed herein (such affiliated companies are hereinafter collectively referred to as the **"Pool Account Holders"**);

WHEREAS the purpose of this Cash Pooling Agreement is limited to regulating the cash pooling services to be provided by **ORG** to the Master Account Holder and the Pool Account Holders, and no lending of any form or financing of any kind, neither by **ORG** to the Master Account Holder or to any of the Pool Account Holders, nor among the Master Account Holder and any of the Pool Account Holders, is made or stipulated to be made under this Cash Pooling Agreement.

THEREFORE, it is agreed as follows:

1. **Master Account**

The Master Account Holder maintains the account IBAN **Mother** (EUR) with **ORG** which shall be used for the purpose of the cash pooling agreed herein (hereinafter the **"Master Account"**).

2. **Pool Accounts**

The cash pooling services will be performed in respect of the Master Account and can involve accounts of the Master Account Holder (other than the Master Account) and/or accounts of Pool Account Holders maintained at

- a) **ORG** only, in the form of a **zero balancing** (such accounts hereinafter referred to as **ORG Pool Accounts**" and such cash pooling services as **ORG Cash Pooling**", or
- b) any bank that is a member of the **LOC** Raiffeisen banking group, in the form of a **zero balancing** (such bank hereinafter referred to as a **Bank** such accounts as **Bank Pool Accounts**") and such cash pooling services as **Bank Zero Balancing - RBZB**"), or
- c) any third party bank (including in particular **ORG** network banks) located outside **LOC** with whom **ORG** has agreed to cooperate in respect of cross-border cash pooling in the form of a **target balancing** (such bank hereinafter referred to as a **ORG** such accounts as **"CB Pool Accounts"** and such cash pooling services as **"Cross Border Target Balancing - CBTB"**), or
- d) any third party bank (including in particular **ORG** network banks) located outside **LOC** with whom **ORG** has agreed to cooperate in respect of cross-border cash pooling in the form of a **zero balancing** via special nostro accounts (such bank hereinafter referred to as a **ORG** such accounts as **"CB Pool Accounts"** and such cash pooling services as **"Cross Border Zero Balancing - CBZB"**, or
- e) any third party bank in **LOC** with whom **ORG** has agreed to cooperate in respect of cash pooling, in the form of a **target balancing** (such bank hereinafter referred to as a **ORG** such accounts as **"PB Pool Accounts"**, and such cash pooling services as **ORG Target Balancing - PBTB**".

ORG Pool Accounts, **Bank** Pool Accounts, **CB** Pool Accounts, and **PB** Pool Accounts shall collectively be referred to as **"Pool Accounts"**.

The Pool Accounts agreed by **ORG** and the Master Account Holder to be involved in the cash pooling services are set out in **Annex 1** hereto.

3. **Commencement Date**

The cash pooling services shall commence in respect of any Pool Account not earlier than 10 **LOC Business Days**" (i.e. any day except Saturday and Sunday on which banks are open for general business in **LOC** after this Agreement has been entered into and **ORG** has received the consent of each Pool Account Holder, and further provided that in case of **RBZB**, **CBTB**, **CBZB** and **PBTB** the required cooperation agreement with the relevant **Bank** or **ORG** is in place (hereinafter the **"Commencement Date"**).

4. **Charges, Parameters, Internet**

- a) The charges for the cash pooling services agreed herein shall be paid by the Master Account Holder and are set forth in **Annex 2**. **ORG** retains the right to change the charges at any time following a written notice to the Master Account Holder specifying the changed charges and the date as of which they become applicable.
- b) The terms and conditions regarding the access to **ORG** internet site „Cash Pooling Internet URL are set out in **Annex 3** “Cash Pooling Internet URL
- c) Certain operational parameters to be determined by the Master Account Holder are set out in **Annex 4** “Operational Parameters”.

5. **Cash Pooling Services**

The Master Account Holder and **ORG** agree on the cash pooling services set out below.
(check YES or NO)

Cash Pooling service	Procedure and applicable terms and conditions set out in Annex	YES	NO
ORG Cash Pooling ORG ZB)	Annex A zero balancing of the Master Account and ORG Pool Accounts	☐	☒
Bank Zero Balancing (RBZB)	Annex B zero balancing of the Master Account and ORG Pool Accounts	☐	☒
Cross Border Target Balancing (CBTB)	Annex C target balancing of the Master Account and CB Pool Accounts	☒	☐
Cross Border Zero Balancing (CBZB)	Annex D zero balancing of the Master Account and CB Pool Accounts via special nostro accounts	☐	☒
ORG Target Balancing (PBTB)	Annex E target balancing of the Master Account and PB Pool Accounts held with LOC Partner Banks	☐	☒

6. **Representations and Undertakings of the Master Account Holder**

The Master Account Holder acknowledges, agrees, represents, undertakes and guarantees that during the term of the Cash Pooling Agreement:

- a) the Master Account Holder has full power and authority to enter into this Cash Pooling Agreement, to participate in the cash pooling as agreed herein and to perform its obligations hereunder;
- b) entering into this Cash Pooling Agreement, the participation in the cash pooling as agreed herein, and the performance of its obligations hereunder are and will always be in full compliance with any and all present and future laws and legal regulations applicable to the Master Account Holder and the Pool Account Holders, including, without limitation, rules on the preservation of capital, and do not and will not at any time constitute a breach of any present or future statutory documents or any contractual or other obligation of any kind of the Master Account Holder or any Pool Account Holder;
- c) each Pool Account Holder will at all times receive adequate compensation for any credit balance on any of its Pool Accounts that is transferred to the Master Account, and the Master Account Holder will at all times receive adequate compensation for any credit balance on the Master Account that is transferred to any Pool Account, as a result of the cash pooling services performed pursuant to this Cash Pooling Agreement;
- d) the Master Account Holder will keep each Pool Account Holder fully informed at any time regarding the terms and conditions agreed with **ORG** hereunder, the kind and scope of cash pooling services performed pursuant to this Cash Pooling Agreement, as well as the other Pool Accounts Holders and Pool Accounts in respect of which these services are performed;
- e) The Master Account Holder and each Pool Account Holder has and shall maintain an adequate financial condition in order for it to participate in the cash pooling in compliance with applicable laws and regulations;
- f) **ORG** does not assume any obligation or liability whatsoever in connection with the Master Account Holder and any of the Pool Account Holders belonging to the same group of companies, with any of the issues referred to in this Clause 6, or with any tax, stamp duty or other legal issues whatsoever;
- g) **ORG** has not, will not, and is under no duty whatsoever to advise the Master Account Holder or any Pool Account Holders on the effects of the cash pooling services, and that the Master Account Holder has obtained or will obtain and solely rely on the advice of independent qualified tax, legal and other appropriate advisers in this connection; and
- h) in case of any cash pooling involving Pool Accounts at **Bank** or Partner Banks, as a result of the agreed **maximum amount** in respect of each relevant Pool Account, disposals over the **ORG** Pool Accounts are limited to the aggregate of the funds available on all **ORG** Pool Accounts, taking into account any overdraft regarding the Master Account which may be agreed by **ORG** and the Master Account Holder from time to time, MINUS (unless otherwise agreed by **ORG** and the Master Account Holder) the aggregate of the maximum amounts agreed for the relevant Pool Accounts.

7. **Duties of the Master Account Holder**

- a) The Master Account Holder shall, except in cases of willful conduct or gross negligence on the part of **ORG** indemnify **ORG** and hold it harmless in respect of any damages or losses arising in connection with this Cash Pooling Agreement and the cash pooling services performed hereunder. Any costs, expenses or dues (including any stamp duties) which may arise now or in the future in connection with this Cash

Pooling Agreement or the cash pooling services performed hereunder shall be borne by the Master Account Holder;

- b) The Master Account Holder shall deliver to **ORG** and shall ensure that each Pool Account Holder delivers to **ORG** copies of its audited accounts within 6 months after the end of the financial period for which they have been prepared, as well as any information in relation to its business operations and financial position as **ORG** may reasonably request; from time to time and
- c) The Master Account Holder shall promptly inform **ORG** of any material adverse change of its financial condition or the financial condition of any Pool Account Holder, including in particular any event or circumstances that may lead to the Master Account Holder or any Pool Account Holder becoming insolvent, and the Master Account Holder undertakes to ensure that any debit balance on the Master Account or any Pool Account resulting from or in connection with an insolvency of any Pool Account Holder shall be fully covered and to reimburse **ORG** for any incurred losses.

8. **Termination**

This Cash Pooling Agreement is concluded for an unlimited period of time and can be terminated by either party at the end of each calendar month giving one month's written notice to the other party. **ORG** shall be entitled to terminate the Cash Pooling Agreement at any time for good cause with respect to any or all Pool Accounts and the Master Account, including without limitation upon the occurrence, in respect of the Master Account Holder or any Pool Account Holder, of any of the following events:

- a) a material deterioration of the financial situation, including in particular any event or circumstances which in the reasonable opinion of **ORG** may lead to the Master Account Holder or any Pool Account Holder becoming insolvent;
- b) any information regarding the situation of the Master Account Holder or the relevant Pool Account Holder delivered to **ORG** in connection with the cash pooling services is materially incorrect;
- c) any violation of any material obligation agreed in connection with the cash pooling services agreed herein, including without limitation any violation of the duties set out in clause 7 of this Agreement, which is not remedied within any time period granted by **ORG** or
- d) the cash pooling services are suspended for lack of sufficient funds and no solution can be agreed with the Master Account Holder within a time period acceptable to **ORG**

The Master Account Holder may, and upon request of **ORG** shall, terminate this Cash Pooling Agreement entirely or with respect to any affected Pool Account Holder in case of a material adverse change of its or of the relevant Pool Account Holder's financial condition.

9. **Liability of **ORG****

ORG shall be liable only for pecuniary damages suffered as a direct result of gross negligence or willful misconduct on the part of **ORG**

In the event that **ORG** is liable for any damage caused by a defect in its IT equipment for which **ORG** is not responsible, the liability of **ORG** shall be limited to EUR 20,000.00 per event of damage and affected account holder, but in any case to a maximum total of EUR 400,000.00 for all customers. Under no circumstances can **ORG** be held liable if the damage was caused by an independent third party or otherwise by an unavoidable event which is due neither to a defect in the condition nor to the malfunctioning of the IT equipment of **ORG**

10. Other Provisions

- a) Notices in connection with this Agreement shall be given in writing to the address specified below or any address subsequently notified to the relevant party in writing.

Master Account Holder			
Contact person	PERSON	MISC	to MISC
Address	LOC		
Telephone number:	NUM		
Email address:	EMAIL		

ORG			
Contact person	PERSON	MISC	to MISC
Address	LOC		
Telephone number:	NUM		
Email address:	EMAIL		

- b) ORG processes data of natural persons ("data subjects") acting towards ORG on behalf of the customer in compliance with the European General Data Protection Regulation 2016/649 (GDPR). Information about data subjects' rights according to GDPR and how they can contact ORG can be found on ORG website URL. The Master Account Holder will inform data subjects about this website.
- c) Changes of this Cash Pooling Agreement shall be valid only if made in writing. If any provision of this Agreement is or becomes invalid or unenforceable, the validity of the other provisions hereof shall not be affected and the invalid or unenforceable provision shall be deemed replaced by a valid and enforceable substitute provision reflecting as closely as possible the purpose of the invalid or unenforceable provision.

11. Governing Law, ORG Jurisdiction

- a) This Agreement shall be governed by LOC law.
- b) The following business conditions of ORG shall apply: General Terms and Conditions of ORG ORG which are available on ORG website: URL. The Customer confirms that it is familiar with and accepts the ORG
- c) Any disputes arising in connection with this Agreement shall be submitted to the exclusive jurisdiction of the commercial courts for LOC to whose jurisdiction the User Company irrevocably submits. Notwithstanding this jurisdiction clause, ORG shall be entitled to submit any dispute to any other court accepting its competence in LOC or abroad.

Annex 1 Pool Accounts

Annex 2 Cash Pooling Charges

Annex 3 Cash Pooling Internet **URL**

Annex 4 Operational Parameters

Annex A **ORG** Cash Pooling

☐ yes

☒ no

Annex B **Bank** Zero Balancing – RBZB

☐ yes

☒ no

Annex C Cross-border Target Balancing – CBTB

☒ yes

☐ no

Annex D Cross Border Zero Balancing - CBZB

☐ yes

☒ no

Annex E Partner Banks Target Balancing – PBTB

☐ yes

☒ no

Master Account Holder

Place

Date

Legally represented by

Signature:

First Name & Surname in capacity as

First Name & Surname in capacity as

Bank

Place

Date

Legally represented by

Signature:

First Name & Surname in capacity as

First Name & Surname in capacity as

Annex 1 to the Cash Pooling Agreement
Pool Accounts

Master Account:

IBAN of Master Account: IBAN_Mother

Name of Master Account Holder: Mother

Address of Master Account Holder

Street: Loc

No: Loc

Postal Code: Loc

Town: Loc

Country (ISO Code): Loc

A) ☐ Cash Pooling ☐ Zero Balancing):

IBAN	Currency	Pool Account	Name of Pool Account CPS (max. 25 digits)	Intra-day Limit
---	EUR	Participant	Participant	500.000,00
---	EUR	Participant	Participant	500.000,00
IBAN	Ccy	Account name	Account name - CPS	Intra-day Limit
IBAN	Ccy	Account name	Account name - CPS	Intra-day Limit
IBAN	Ccy	Account name	Account name - CPS	Intra-day Limit
IBAN	Ccy	Account name	Account name - CPS	Intra-day Limit

B) ☐ Bank ☐ Zero Balancing RBZB:

Bank	IBAN	Currency	Pool Account (Name and address)	Name of Pool Account CPS (max. 25 digits)	Maximum Amount covered via ☐ Master Account
Bank /	---	EUR	Name of Pool Account Holder: Participant Street: Loc No: Loc Postal Code: Loc Town: Loc Country (ISO Code): Loc	Participant	500.000,00
RLBOÖ	---	EUR	Name of Pool Account Holder: Participant Street: Loc No: Loc Postal Code: Loc Town: Loc Country (ISO Code): Loc	Participant	500.000,00
---	IBAN	Ccy	Name of Pool Account Holder: ☐ ☐ to MISC	Account name - CPS	Maximum Amount

Bank Bank	IBAN	Currency	Pool Account (Name and address)	Name of Pool Account CPS (max. 25 digits)	Maximum Amount covered via ^{ORG} Master Account
			Street: MISC to MISC No: MISC to MISC Postal Code: MISC to MISC Town: MISC to MISC Country (ISO Code): MISC to MISC		
	IBAN	Ccy	Name of Pool Account Holder: MISC MISC to MISC Street: MISC to MISC No: MISC to MISC Postal Code: MISC to MISC Town: MISC to MISC Country (ISO Code): MISC to MISC	Account name - CPS	Maximum Amount
	IBAN	Ccy	Name of Pool Account Holder: MISC MISC to MISC Street: MISC to MISC No: MISC to MISC Postal Code: MISC to MISC Town: MISC to MISC Country (ISO Code): MISC to MISC	Account name - CPS	Maximum Amount
	IBAN	Ccy	Name of Pool Account Holder: MISC MISC to MISC Street: MISC to MISC No: MISC to MISC Postal Code: MISC to MISC Town: MISC to MISC Country (ISO Code): MISC to MISC	Account name - CPS	Maximum Amount

C) Cross-Border Target Pooling CBTB:

ORG ORG	IBAN	Currency	CB Pool Account (Name and address)	Name of Pool Account CPS (max. 25 digits)	Maximum Amount covered via ^{ORG} Master Account	Minimum Transfer Amount	Target Balance
Bank Bank		EUR	Name of Pool Account Holder: Participant Street: Loc No: Loc Postal Code: Loc Town: Loc Country (ISO Code): Loc	Participant	500.000,00	10.000,00	500.000, 00
Bank Bank		EUR	Name of Pool Account Holder: Participant Street: Loc No: Loc Postal Code: Loc Town: Loc Country (ISO Code): Loc	Participant	500.000,00	10.000,00	500.000, 00

ORG ORG	IBAN	Currency	CB Pool Account (Name and address)	Name of Pool Account CPS (max. 25 digits)	Maximum Amount covered via ORG Master Account	Minimum Transfer Amount	Target Balance
			Town: MISC to MISC Country (ISO Code): MISC to MISC				
ORG ORG	IBAN	Ccy	Name of Pool Account Holder: MISC to MISC Street: MISC to MISC No: MISC to MISC Postal Code: MISC to MISC Town: MISC to MISC Country (ISO Code): MISC to MISC	Account name - CPS	Maximum Amount	Min Transfer Amount	Target Balance
ORG ORG	IBAN	Ccy	Name of Pool Account Holder: MISC to MISC Street: MISC to MISC No: MISC to MISC Postal Code: MISC to MISC Town: MISC to MISC Country (ISO Code): MISC to MISC	Account name - CPS	Maximum Amount	Min Transfer Amount	Target Balance
ORG ORG	IBAN	Ccy	Name of Pool Account Holder: MISC to MISC Street: MISC to MISC No: MISC to MISC Postal Code: MISC to MISC Town: MISC to MISC Country (ISO Code): MISC to MISC	Account name - CPS	Maximum Amount	Min Transfer Amount	Target Balance

D) Cross-Border Zero Balancing CBZB:

ORG	IBAN	Currency	CB Pool Account	Name of Pool Account CPS (max. 25 digits)	Maximum Amount covered via ORG Master Account
Bank		EUR	Participant	Participant	500.000,00

ORG	IBAN	Currency	CB Pool Account	Name of Pool Account CPS (max. 25 digits)	Maximum Amount covered via ORG Master Account
Bank		EUR	Participant	Participant	500.000,00
ORG	IBAN	Ccy	Account name	Account name - CPS	Maximum Amount
ORG	IBAN	Ccy	Account name	Account name - CPS	Maximum Amount
ORG	IBAN	Ccy	Account name	Account name - CPS	Maximum Amount
ORG	IBAN	Ccy	Account name	Account name - CPS	Maximum Amount

E) ORG Target Balancing PBTB:

ORG ORG	IBAN	Currency	PB Pool Account (Name and address)	Name of Pool Account CPS (max. 25 digits)	Maximum Amount covered via ORG Master Account	Minimum Transfer Amount	Target Balance
Bank Bank		EUR	Name of Pool Account Holder: Participant Street: LOC No: LOC Postal Code: LOC Town: LOC Country (ISO Code): LOC	Participant	500.000,00	10.000,00	500.000, 00
Bank Bank		EUR	Name of Pool Account Holder: Participant Street: LOC No: LOC Postal Code: LOC Town: LOC Country (ISO Code): LOC	Participant	500.000,00	10.000,00	500.000, 00
ORG ORG	IBAN	Ccy	Name of Pool Account Holder: MISC to MISC Street: MISC to MISC No: MISC to MISC Postal Code: MISC to MISC Town: MISC to MISC Country (ISO Code): MISC to MISC	Account name - CPS	Maximum Amount	Min Transfer Amount	Target Balance
ORG ORG	IBAN	Ccy	Name of Pool Account Holder: MISC to MISC	Account name - CPS	Maximum Amount	Min Transfer Amount	Target Balance

ORG ORG	IBAN	Currency	PB Pool Account (Name and address)	Name of Pool Account CPS (max. 25 digits)	Maximum Amount covered via ORG Master Account	Minimum Transfer Amount	Target Balance
			Street: MISC to MISC No: MISC to MISC MISC Postal Code: MISC to MISC Town: MISC to MISC Country (ISO Code): MISC to MISC				
ORG ORG	IBAN	Ccy	Name of Pool Account Holder: MISC to MISC Street: MISC to MISC No: MISC to MISC MISC Postal Code: MISC to MISC Town: MISC to MISC Country (ISO Code): MISC to MISC	Account name - CPS	Maximum Amount	Min Transfer Amount	Target Balance
ORG ORG	IBAN	Ccy	Name of Pool Account Holder: MISC to MISC Street: MISC to MISC No: MISC to MISC MISC Postal Code: MISC to MISC Town: MISC to MISC Country (ISO Code): MISC to MISC	Account name - CPS	Maximum Amount	Min Transfer Amount	Target Balance

Annex 2 to the Cash Pooling Agreement
Cash Pooling Charges

One-time set up fee	
Set-up fee:	EUR 100.000,00
debited from account:	IBAN Mother

Monthly service fee	
Monthly fee per Pool Account:	EUR 5.000,00
debited monthly from account:	IBAN Mother

Annex 3 to the Cash Pooling Agreement
Cash Pooling Internet URL

1. Cash Pooling Internet Site

This Annex „Cash Pooling Internet URL” which constitutes an integrated part of the Cash Pooling Agreement, sets out the terms and conditions regarding the access by the Master Account Holder to ORG internet site URL which provides information to the Master Account Holder in respect of the cash pooling services agreed in the Cash Pooling Agreement.

The information available on URL is further described and defined on the internet site’s on-line help section and shall, amongst others, contain reports on effected pooling transfers, interest rates, notional interest calculations. The availability of the individual reports depends on the agreed type of cash pooling.

For accessing URL users require a strong customer authentication (“SCA”), as set out in clause 2. b).

2. Access/User Management

- a) The Customer confirms that the following persons shall have access to URL Site and the information available on such site (“Authorized Persons”). The Customer agrees to inform ORG in writing or by e-mail about any changes regarding the Authorized Persons without delay.¹

Authorized Persons for URL nominated by the Master Account Holder

First name	Surname	Language	Email	Access restrictions
PERSON ☐ Ms. ☒ Mr.	PERSON	☒ German ☐ English	EMAIL	☒ NO ☐ YES MISC to MISC
First name ☐ Ms. ☐ Mr.	Last name	☐ German ☐ English	email	☒ NO ☐ YES MISC to MISC
First name ☐ Ms. ☐ Mr.	Last name	☐ German ☐ English	email	☒ NO ☐ YES MISC to MISC

- b) ORG will assign a (i) user-ID to the Master Account Holder and a (ii) personalized password to each Authorized Person (“Password”); (i) and (ii) hereinafter collectively the “User Codes”.
- c) ORG may deactivate Authorized Persons without notification from accessing the URL Site if they have not logged on to the URL Site for more than 12 months after their last log on. Upon written

¹ ORG processes data of natural persons (“data subjects”) acting towards ORG on behalf of the customer in compliance with the European General Data Protection Regulation 2016/679 (GDPR). Information about data subjects’ rights according to GDPR and how they can contact ORG can be found on ORG website URL

request by the Customer (at the contact details acc. to clause 10.a Cash Pooling Agreement) such deactivated Authorized Persons may be re-activated for accessing the URL Site.

- d) For the purpose of this Agreement “TOTP” means a Time-based One-Time Password that is generated by a TOTP application installed on a smartphone or computer used by an Authorized Person (“TOTP App”).

In order for an Authorized Person to access URL a TOTP authentication is required in addition to entering the Authorized Person’s User Codes. The TOTP is generated by the Authorized Person via the TOTP App.

To use a TOTP, Authorized Persons need a TOTP app provided by third parties on their smartphone or computer, which must be acquired and used by the customer at its own expense and risk. The TOTP apps listed and described in the current version of our TOTP-manuals have been tested for technical compatibility with URL ORG will continuously verify this compatibility for the in the TOTP-manuals listed TOTP apps with URL with new versions.

ORG does not assume liability for third-party apps and cannot guarantee that URL will function without restrictions with future versions of the mentioned TOTP apps or with other third-party apps.

ORG provides the Authorized Persons via email with a check code. The check code is required for the first synchronization of the Authorized Person in URL with the TOTP App. After such synchronization, an Authorized Person logs on to URL by entering its User Codes and a TOTP into the system. The TOTP App invoked by the Authorized Person for a log on in URL generates a one-time 6-digit password, that is valid for 30 seconds. The one-time password is valid for an individual session at URL

The above mentioned check code and the Time-based One-Time Password (TOTP) shall together with the User Codes be referred to as the “**Security Features**”.

3. **Duty of Care, Liability of the Customer**

The Master Account Holder and each Authorized Person shall be subject to the following duties of care:

- a. The Security Features shall be kept secret, must not be disclosed to third parties and not stored electronically. It must be ensured that third parties do not have any access to the Security Features.
- b. If the Master Account Holder or an Authorized Person suspects an unauthorized third party to have knowledge of the Security Features, the Master Account Holder or the Authorized Person shall promptly take the steps provided for in clause 4.
- c. Access to URL shall only be established if there is a secure connection to URL
- d. The IT equipment for the use of URL shall be maintained in orderly condition and comply with the technical requirements notified to the Master Account Holder. Any harm to the technical equipment (hardware and software, (e.g., viruses) of ORG or of other customers shall by all means be avoided. Software of any kind may be purchased only from generally trustworthy suppliers.
- e. The contractual provisions, menu prompts and security instructions shall be observed.
- f. When using URL the Master Account Holder shall act in compliance with the laws, applicable to it in the relevant jurisdiction.

The Master Account Holder shall be responsible for ensuring that all Authorized Persons are familiar with and comply with the above duties of care.

4. **Blocking Authorized Access**

The Master Account Holder or relevant Authorized Person may have an access authorization blocked as follows:

- a. by sending an email to the **ORG** Cash Management Support Desk, which operates during normal usual business hours on **LOC** bank days ("Time of Operation"); the relevant contact details of the **ORG** Cash Management Support Desk will be notified to the Master Account Holder by **ORG** in the TOTP manual, a copy of which is also available upon request from **ORG**
 - b. In the above-mentioned cases, the blocking shall come into effect immediately upon receipt of the blocking request during the Time of Operation, or if received outside the Time of Operation on the next following **LOC** banking day.
 - c. In the event of the loss of any or all of the Security Features issued by **ORG** and/or created by the Authorized Person, or if the suspicion arises that an unauthorized person has obtained knowledge or possession of the Security Features the Authorized Person is obligated to cause the blocking of the Security Features concerned. If it is not possible to block the Security Features in the manner described above, the Authorized Person shall as a first step change the Password or cause the blocking of authorized access by entering a wrong Password three times in the login window. Also in this case, the Authorized Person shall, at the earliest possible time, cause the blocking of authorized access in the manner described above.
 - d. An Authorized Person shall be entitled to have his/her access to **URL** blocked. The Master Account Holder shall moreover be entitled to have access of all Authorized Persons to its accounts blocked.
 - e. After three attempts to obtain access with false means of identification, access will be blocked automatically.
 - f. **ORG** shall have the right to block an Authorized Person's access to **URL** without the involvement of the Master Account Holder or the Authorized Person · if this is justified by objective reasons in connection with the security of electronic banking, or · if unauthorized or fraudulent use of the Security Features is suspected.
 - g. The unblocking of the access can only be effected by **ORG** and requires instructions of the Master Account Holder or - to the extent that the access to be unblocked is that of an Authorized Person who caused its own access to blocked - the Authorized Person.
 - h. The Master Account Holder shall indemnify **ORG** and hold it harmless in respect of any damages or losses arising in connection with any unauthorized disclosure or misuse of the Security Features and / or the blocking by **ORG** of the Authorized Person's access to **URL** and / or the restoring of the Authorized Person's ability to access **URL** following a blocking. All risks in connection with any unauthorized disclosure or misuse of Security Features that **ORG** has failed to perceive through no fault of its own, shall be borne by the Master Account Holder.
5. **Availability of URL**
- ORG** will take all possible and economically reasonable measures to provide access to Cash Pooling Internet to the Master Account Holder or any Pool Account Holder, but the Master Account Holder acknowledges that **ORG** cannot undertake any liability for access being always possible and free of disruptions

Annex 4 to the Cash Pooling Agreement
Operational Parameters
Parameters to be defined by the Customer in respect of the Cash Pooling System („CPS“)

A) **ORG** Cash Pooling **ORG** Zero Balancing):

Starting Date of Cash Pooling	DATE	
Number of poolings per day and execution times of pooling	☒ based on MT940 of the preceding Business Day ☒ until 8:30 am ☐ until MISC to MISC am	
	☐ intraday Pooling (EUR) based on MT942	1 st pooling at 6.45 pm (MT942 of 6:15/6:30 pm) 2 nd pooling until 8:30 am (MT940 of the preceding Business Day)
	☐ intraday Pooling (FCY) based on MT942	1 st pooling at 5.05 pm (MT942 of 5:00 pm) 2 nd pooling until 8:30 am (MT940 of the preceding Business Day)
MT942 to be provided after the pooling	☐ YES ☒ NO	Via Swift to bank: BIC
Valuation	☐ back valuations only ☒ back and forward valuations	
Time Period for Valuation	☒ -185/+92 days ☐ -/+ MISC to MISC Days (max range -185/+92)	
Information on Account Statements	☒ one line (max. 27 digits) ☐ two lines	One line: CPAAAAAAAAAAAA/SSSHHHHHHHH Two lines: 1 st line: CPSSHHHHHHHH+14 available digits 2 nd line.: AAAAAAAAAAAAAA Note: AAAAAAAAAAAAAA = Cash Pooling reference -generated by CPS SSSHHHHHHHH: Counterpart Account Number In structured MT940 information is provided in respective subfields. In camt.053 information is provided in respective tags.
Notional Interest Calculation	☒ monthly excluding last day ☐ quarterly excluding last day	
Interest Period	☒ on the 4th Business Day of the subsequent Interest Period ☐ on the MISC to MISC Business Day of the subsequent Interest Period	
Availability		
Modification due to Back Valuation	☒ YES ☐ NO	
Interest Rate on Pool Accounts	☒ same as on Master Account ☐ other margins (to be provided by the Customer) ☐ fixed interest rate (to be provided by the Customer)	
Calculation	☒ actual /360 ☐ actual /365	

Booking of Interest based on the Notional Interest Calculation	☐ YES ☒ NO	
Reaction of the pooling system if the specified limit is exceeded	Issue a warning only (all transfers are executed)	No other CPS reactions available

B) Bank **Zero Balancing RBZB:**

Starting Date of Cash Pooling	DATE	
Number of poolings per day and execution times of pooling	☒ based on MT940 of the preceding Business Day ☒ until 8:30 am ☐ until MISC to MISC am	
	☐ intraday Pooling based on MT942	1 st pooling in the afternoon based on COT and one internal processes to be agreed on with the respective Bank 2 nd pooling until 8:30 am (MT940 of the preceding Business Day)
MT942 of Master Account to be provided after the pooling	☐ YES ☒ NO	Via Swift to bank: BIC
Valuation	☐ back valuations only ☒ back and forward valuations	
Time Period for Valuation	☒ -185/+92 days ☐ -/+ MISC to MISC Days (max range -185/+92)	
Information on Account Statements	☐ one line ☒ two lines	One line: 1 st line: CPAAAAAAAAAAAA Two lines: 1 st line: CPAAAAAAAAAAAA 2 nd line.: MA: SSSHHHHHHH SA: SSSHHHHHHH Note: AAAAAAAAAAAAA = Cash Pooling reference -generated by CPS SSSHHHHHHH: Account Number In structured MT940 information is provided in respective subfields. In camt.053 information is provided in respective tags.
Notional Interest Calculation Interest Period	☒ monthly excluding last day ☐ quarterly excluding last day	
Availability	☒ on the 4th Business Day of the subsequent Interest Period ☐ on the MISC to MISC Business Day of the subsequent Interest Period	
Modification due to Back Valuation	☒ YES ☐ NO	
Interest Rate on Pool Accounts	☒ same as on Master Account ☐ other margins (to be provided by the Customer) ☐ fixed interest rate (to be provided by the Customer)	
Calculation	☒ actual /360 ☐ actual /365	
Reaction of the pooling system if the specified limit is exceeded	☒ Issue a warning only (all transfers are executed). ☐ Do not execute transfer, block (the calculated transfers are not executed)	

	and the account is blocked for forthcoming poolings). ☐ Settle transaction, block (the calculated transfers are executed. The account is blocked for forthcoming poolings). ☐ Do not execute transfer (the calculated transfers are not executed). ☐ Settle transaction up to limit (the calculated transfers are executed up to the defined limit. The difference remains on the account). ☐ Settle transaction up to limit, block (the calculated transfers are executed up to the defined limit. The difference remains on the account. The account is blocked for forthcoming poolings).	
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C) Cross-Border Target Pooling CBTB:

Starting Date of Cash Pooling	DATE	
Number of poolings per day and execution times of pooling	☒ based on MT940 of the preceding Business Day ☒ until 9:00 am ☐ until MISC to MISC am	
	☐ intraday Pooling based on MT942	Pooling in the afternoon based on COT to be agreed on with the respective ORG
Frequency of pooling	☒ daily ☐ once a week on xxx ☐ xxx (please specify if any other frequency is required)	
Special settings (such as CP in one direction only, two Pooling runs per day, etc.)	Standard setting: Cash Pooling in both directions (debit balances on Pool Accounts to be covered via one Master Account and credit balances to be transferred from Pool Accounts to one Master Account) Special settings: XXX (please specify)	
MT942 to be provided after the pooling	☐ YES ☒ NO	Via Swift to bank: BIC
Information on Account Statements	☐ one line ☒ two lines	One line: 1st line: CPAAAAAAAAAAAAA Two lines: 1st line: CPAAAAAAAAAAAAA 2nd line.: MA: SSSHHHHHHHH SA: SSSHHHHHHHH Note: AAAAAAAAAAAAA = Cash Pooling reference -generated by CPS SSSHHHHHHHH: Account Number In structured MT940 information is provided in respective subfields. In camt.053 information is provided in respective tags.
Notional Interest Calculation Interest Period	☒ monthly excluding last day ☐ quarterly excluding last day	
Availability	☒ on the 4th Business Day of the subsequent Interest Period ☐ on the MISC to MISC	

Modification due to Back Valuation	Business Day of the subsequent Interest Period ☒ YES ☐ NO	
Interest Rate on Pool Accounts	☒ same as on Master Account ☐ other margins (to be provided by the Customer) ☐ fixed interest rate (to be provided by the Customer)	
Calculation	☒ actual /360 ☐ actual /365	
Reaction of the pooling system if the specified limit is exceeded	☐ Issue a warning only (all transfers are executed). ☐ Do not execute transfer, block (the calculated transfers are not executed and the account is blocked for forthcoming poolings). ☐ Settle transaction, block (the calculated transfers are executed. The account is blocked for forthcoming poolings). ☐ Do not execute transfer (the calculated transfers are not executed). ☒ Settle transaction up to limit (the calculated transfers are executed up to the defined limit. The difference remains on the account). ☐ Settle transaction up to limit, block (the calculated transfers are executed up to the defined limit. The difference remains on the account. The account is blocked for forthcoming poolings).	

D) Cross-Border Zero Balancing CBZB:

Starting Date of Cash Pooling	DATE	
MT942 to be provided after the pooling	☐ YES ☒ NO	Via Swift to bank: BIC
Execution time of Pooling	Day 1: End of Day Pooling of local Pool Account Day 2: until 9:30 am ORG Pooling (Counterbooking to ORG Master Account)	
Information on Account Statements	☒ two lines	Two lines: 1 st line: CPAAAAAAAAAAAA 2 nd line.: SA: Account Number Note: AAAAAAAAAAAA = Cash Pooling reference -generated by CPS In structured MT940 information is provided in respective subfields. In camt.053 information is provided in respective tags.
Notional Interest Calculation Interest Period	☒ monthly excluding last day ☐ quarterly excluding last day	
Availability	☒ on the 4th Business Day of the subsequent Interest Period ☐ on the MISC to MISC Business Day of the subsequent Interest	

Modification due to Back Valuation	Period ☒ YES ☐ NO	
Interest Rate on Pool Accounts	☒ same as on Master Account ☐ other margins (to be provided by the Customer) ☐ fixed interest rate (to be provided by the Customer)	
Calculation	☒ actual /360 ☐ actual /365	
Reaction of the pooling system if the specified limit is exceeded	☒ Issue a warning only (all transfers are executed).	No other CPS reactions available

E) **ORG** Target Balancing PBTB:

Starting Date of Cash Pooling	DATE	
Number of poolings per day and execution times of pooling	☒ based on MT940 of the preceding Business Day ☒ until 9:30 am ☐ until MISC to MISC am	
	☐ intraday Pooling based on MT942	Pooling in the afternoon based on COT to be agreed on with the respective ORG
Frequency of pooling	☒ daily ☐ once a week on xxx ☐ xxx (please specify if any other frequency is required)	
Special settings (such as CP in one direction only, two Pooling runs per day, etc.)	Standard setting: Cash Pooling in both directions (debit balances on Pool Accounts to be covered via org Master Account and credit balances to be transferred from Pool Accounts to org Master Account) Special settings: XXX (please specify)	
MT942 to be provided after the pooling	☐ YES ☒ NO	Via Swift to bank: BIC
Information on Account Statements	☐ one line ☒ two lines	One line: 1 st line: CPAAAAAAAAAAAAA Two lines: 1 st line: CPAAAAAAAAAAAAA 2 nd line.: MA: SSSHHHHHHH SA: SSSHHHHHHH Note: AAAAAAAAAAAAA = Cash Pooling reference -generated by CPS SSSHHHHHHH: Account Number In structured MT940 information is provided in respective subfields. In camt.053 information is provided in respective tags.
Notional Interest Calculation Interest Period	☒ monthly excluding last day ☐ quarterly excluding last day	
Availability	☒ on the 4th Business Day of the subsequent Interest Period ☐ on the MISC to MISC Business Day of the subsequent Interest	

Modification due to Back Valuation Interest Rate on Pool Accounts Calculation	Period ☒ YES ☐ NO ☒ same as on Master Account ☐ other margins (to be provided by the Customer) ☐ fixed interest rate (to be provided by the Customer) ☒ actual /360 ☐ actual /365	
Reaction of the pooling system if the specified limit is exceeded	☒ Issue a warning only (all transfers are executed). ☐ Do not execute transfer, block (the calculated transfers are not executed and the account is blocked for forthcoming poolings). ☐ Settle transaction, block (the calculated transfers are executed. The account is blocked for forthcoming poolings). ☐ Do not execute transfer (the calculated transfers are not executed). ☐ Settle transaction up to limit (the calculated transfers are executed up to the defined limit. The difference remains on the account). ☐ Settle transaction up to limit, block (the calculated transfers are executed up to the defined limit. The difference remains on the account. The account is blocked for forthcoming poolings).	

Annex A to the Cash Pooling Agreement
ORG Cash Pooling/Zero Balancing ORG Pool Accounts

The cash pooling of the Master Account and the ORG Pool Accounts will be performed in the form of a zero balancing as follows:

1. As of each day except Saturday and Sunday on which banks in LOC are open for general business MISC ORG shall,
 - a) transfer to the Master Account from each of the ORG Pool Accounts showing a day end credit balance an amount equivalent to such credit balance, and
 - b) transfer from the Master Account to each of the ORG Pool Accounts showing a day-end debit balance an amount equivalent to such debit balance, PROVIDED that such transfer from the Master Account shall be effected only under the condition and to the extent that sufficient funds are available on the Master Account, taking into account a possible overdraft facility agreed with the Master Account Holder. In case no sufficient funds are available to cover all debit balances on the Pool Accounts on any day, ORG shall be entitled to suspend the cash pooling services and will promptly consult with the Master Account Holder on how to remedy the situation. If no solution acceptable to ORG can be agreed within a reasonable time period, ORG shall be entitled to terminate the cash pooling services pursuant to Clause 8 of this Agreement, and the Master Account Holder undertakes to fully cover any debit balance then outstanding on the Master Account and/or any Pool Account and to reimburse ORG for any incurred losses.
2. The ORG Cash Pooling shall be performed on the same MISC or not later than in the morning of the following MISC but always taking into account the correct value dates of each debit and credit balance on each ORG Pool Account.
3. It is agreed that ORG is obliged vis-à-vis the Master Account Holder and the ORG Pool Account Holders a) to transfer to the Master Account from each ORG Pool Account any amount transferred or credited to such ORG Pool Account immediately after such transfer or credit occurs (but in any event not later than in the morning of the next MISC and b) to transfer from the Master Account any amount transferred or credited to the Master Account to any ORG Pool Account(s) on which there is a debit balance, up to the amount of such debit balance and immediately after the occurrence of such debit balance, but in any event not later than in the morning of the next MISC ORG is further obliged to permit disposals of the Master Account Holder over any credit balance on the Master Account only to the extent that such credit balance is not required for the zero balancing of debit balances on the ORG Pool Accounts, and to permit disposals by any Pool Account Holder over any credit balance on its ORG Pool Account(s) only to the extent that such credit balance is not required for the zero balancing of debit balances on the Master Account and/or other ORG Pool Accounts.
4. It is furthermore agreed that any credit balances existing at any time on the Master Account shall be held in trust by the Master Account Holder acting as trustee (Treuhänder) for the benefit of the Pool Account Holders (Treugeber) up to the aggregate amount of the debit balances on the relevant Pool Accounts and until the cash pooling/zero balancing shall have been performed pursuant to Clause 1. hereof. While acting as trustee hereunder, the Master Account Holder shall hold the relevant amount on the Master Account in its own name but on behalf, in the interest and for the benefit of the respective Pool Account Holders and such Pool Account Holders shall be the beneficial co-owners of such amount.
5. The Master Account Holder acknowledges and agrees in respect of ORG Cash Pooling that, unless an **intraday limit** is agreed in respect of any ORG Pool Account as set out in Annex 1, **ORG** cash pooling system will automatically at any time allow disposals on any ORG Pool Account up to the aggregate amount of the funds then available on the Master Account and all relevant Pool Accounts PLUS the

maximum amount of any overdraft facility which may be in place on the Master Account, and that it is therefore the responsibility of the Master Account Holder to agree and control appropriate limits to be respected by the **ORG** Pool Account Holders in their disposals over their **ORG** Pool Accounts.

Annex B to the Cash Pooling Agreement
Bank Zero Balancing – RBZB

The RBZB on the Master Account and each **Bank** Pool Account will be performed in the form of a zero balancing as follows:

1. Not later than 9 a.m. CET on each day except Saturday and Sunday on which banks are open for general business in **LOC** **MISC** the **Bank** will send to **ORG** a SWIFT message MT940 informing **ORG** of the credit or debit balance on each **Bank** Pool Account as of the preceding **MISC**
MISC
2. Upon the receipt of the relevant MT940 messages, **ORG** shall
 - a) transfer to the Master Account from each of the **Bank** Pool Accounts showing a day end credit balance, an amount equal to such credit balance, and
 - b) transfer from the Master Account to each of the **Bank** Pool Accounts showing a day-end debit balance, an amount equal to such debit balance, SUBJECT, however to the Conditions of Clause 3.
 - c) Subject to the timely receipt of the relevant MT940 messages, the RBZB shall be made on the same **MISC** or not later than on the next **MISC** but always taking into account the correct value dates of each debit and credit balance on the relevant **Bank** Pool Account.
3. Transfers from the Master Account pursuant to Clause 2 a) shall be made only
 - up to an amount not exceeding the agreed **maximum amount** per day set out in Annex 1 to the Cash Pooling Agreement with regard to the relevant **Bank** Pool Account; and
 - if and to the extent that sufficient funds are available on the Master Account, taking into account any overdraft facility in respect of the Master Account.

If **ORG** determines on any **MISC** that there are no sufficient funds available to cover all debit balances on the Pool Accounts on that day, **ORG** shall be entitled to suspend the cash pooling services and will promptly consult with the Master Account Holder on how to remedy the situation. If no solution acceptable to **ORG** can be agreed within a reasonable time period, **ORG** shall be entitled to terminate the cash pooling services pursuant to Clause 8 of this Agreement, and the Master Account Holder undertakes to fully cover any debit balance then outstanding on the Master Account and/or any Pool Account.

Annex C to the Cash Pooling Agreement
Cross Border Target Balancing – CBTB

The CBTB on the Master Account and each CB Pool Account will be performed in the form of a target balancing as follows:

1. Not later than 9 a.m. CET on each day except Saturday and Sunday on which banks are open for general business at the seat of the **ORG** (“**Local Business Day**”) the **ORG** will send a SWIFT message MT 940 to **ORG** informing **ORG** of the credit or debit balance on each CB Pool Account as of the preceding Local Business Day.
The **ORG** may also send to **ORG** a SWIFT message MT942 in respect of each CB Pool Account at a later time on the same day as agreed by **ORG** and the **ORG** from time to time.
2. Upon and under the condition of the timely receipt of the relevant MT 940 (and the MT 942, if applicable) from the **ORG** **ORG** shall
 - a) in case of a credit balance on any CB Pool Account, transfer any amount equal to such credit balance to the Master Account by a SWIFT message MT 101, and
 - b) in case of a debit balance on any CB Pool Account, transfer an amount equal to such debit balance from the Master Account to the CB Pool Account by a SWIFT message in the MT 103 format as of the same value day; SUBJECT, however, to the Conditions of Clause 3.
3. The CBTB will be made on the day on which the MT 940/942 messages are received by **ORG** if that day is also a **MISC** otherwise on the following **MISC** (being any day except Saturday and Sunday on which banks in **LOC** are open for the transaction of business), for value as of that day and NOT taking into account the value dates of the credit and debit balances on the CB Pool Accounts.
4. Transfers pursuant to Clause 2 shall be subject to the following conditions:
 - a) any transfer to any CB Pool Account may be limited to an amount not exceeding the agreed **maximum amount** per day set out in Annex 1 to the Cash Pooling Agreement with regard to the relevant CB Pool Account; and
 - b) any transfer to or from any CB Pool Account may further be limited to an amount at least equal to or exceeding a **minimum transfer amount** agreed in respect of any CB Pool Account and set out in Annex 1, and
 - c) any transfer to or from any CP Pool Account may furthermore be subject to a **target balance** agreed in respect of a CP Pool Account and set out in Annex 1 that shall either remain on the CP Pool Account or reached as a result of the transfer from the Master Account, as the case may be.
 - d) any transfers from the Master Account to a CB Pool Account will be made only if sufficient funds are available on the Master Account, taking into account any overdraft facility which may be in place in respect of the Master Account.

If **ORG** determines on any **MISC** that there are no sufficient funds available to cover all debit balances on the Pool Accounts on that day, **ORG** shall be entitled to suspend the cash pooling services and will promptly consult with the Master Account Holder on how to remedy the situation. If no solution acceptable to **ORG** can be agreed within a reasonable time period, **ORG** shall be entitled to

terminate the cash pooling services pursuant to Clause 8 of this Agreement, and the Master Account Holder undertakes to fully cover any debit balance then outstanding on the Master Account and/or any Pool Account and to reimburse **ORG** for any incurred losses.

**Annex D to the Cash Pooling Agreement
Cross Border Zero Balancing - CBZB**

1. For the purpose of the CBZB **ORG** will open a special nostro account with the **ORG** („**Master Nostro Account**“).
2. The CBZB services will be performed on the Master Account and each CB Pool Account in the form of a zero balancing as set out below.
 - a) On each day except Saturday and Sunday on which the **ORG** is open for general business („**Local Business Day**“) the **ORG** will perform a local zero balancing involving the CB Pool Account(s) maintained by it and the Master Nostro Account as set out below in compliance with the value dating procedure applied by the **ORG** subject to its internal rules and technical possibilities.
 - Any credit balance on the CB Pool Account(s) will be transferred to the Master Nostro Account, and
 - In case of any debit balance on the CB Pool Account(s), the relevant amount will be debited to the Master Nostro Account and transferred to the CB Pool Account, SUBJECT, however, to the conditions set out in Clause 3.
 - b) On each Local Business Day the **ORG** will send to **ORG** SWIFT messages MT940 in respect of the CB Account(s) and the Master Nostro Account to be received by **ORG** not later than 7:00 a.m. CET on the next day. The **ORG** will also send to **ORG** SWIFT messages MT942 in respect of the CB Pool Account(s) and the Master Nostro Account at times agreed by **ORG** and the **ORG** from time to time.
 - c) Following the receipt of the relevant MT940 messages, **ORG** will credit amounts equal to the credit balances on the Master Nostro Account to the Master Account, and debit the Master Account with amounts equal to any debit balances on the Master Nostro Account.
 - d) The CBZB services will be performed by **ORG** on the day on which the MT 940 messages are received by **ORG** if that day is also a **MISC** (being any day except Saturday and Sunday on which banks in **LOC** are open for general business), otherwise on the following **MISC** but as of the correct value date of each debit and credit balance on the CB Pool Accounts, in compliance with the value dating procedure applied by the **ORG** subject to its internal rules and technical possibilities. The Master Account Holder acknowledges and agrees that the zero balancing of the CB Pool Account(s) and the Master Account can only be performed under the condition of the timely receipt by **ORG** of the relevant SWIFT messages from the **ORG** and that any delays in sending such messages may result in the CBZB being performed only on the following **MISC**
3. The zero balancing of debit balances on the CB Pool Account(s) with the Master Nostro Account (and subsequently with the Master Account) is subject to two conditions:
 - a) the zero balancing of debit balances on any CB Pool Account will be allowed only up to a daily **maximum amount** agreed in respect of each CB Pool Account by the Pool Account Holder and set out in Annex 1, and
 - b) any zero balancing of debit balances on any CB Pool Account is subject to the availability of sufficient funds on the Master Account, taking into account a possible overdraft facility on the Master Account.
 - c) If **ORG** determines on any **MISC** that the funds available on the Master Account are not

sufficient to cover any debit balance on a CB Pool Account or on any other Pool Account, **ORG** shall

- be entitled to order the **ORG** not to debit the Master Nostro Account and to immediately stop the zero balancing of the CB Pool Account; and
- suspend the cash pooling services; and
- promptly consult with the Master Account Holder on how to remedy the situation.

If no solution acceptable to **ORG** can be agreed within a reasonable time period, **ORG** shall be entitled to terminate the cash pooling services pursuant to Clause 8 of this Agreement, and the Master Account Holder undertakes to fully cover any debit balance then outstanding on the Master Account and/or any Pool Account and to reimburse **ORG** for any incurred losses.

4. The Master Account Holder is responsible to ensure that the holder of each CB Border Pool Account will not allow any debit balance on the CB Pool Account to exceed the maximum amount per day agreed in respect of the relevant CB Pool Account, and that at all times sufficient funds are available on the Master Account to cover debit balances on the CB Pool Accounts, and assumes full liability for, and will hold **ORG** and the **ORG** harmless in respect of any damages or losses incurred by any of them as a result of the non-compliance by the Master Account Holder with the duties agreed herein.

Annex E to the Cash Pooling Agreement
ORG Target Balancing – PBTB

The PBTB on the Master Account and each PB Pool Account will be performed in the form of a target balancing as follows:

1. Not later than 9 a.m. CET on each **MISC** (being any day except Saturday and Sunday on which banks are open for general business in **LOC** the **ORG** shall send a SWIFT message MT 940 to **ORG** informing **ORG** of the credit or debit balance on each PB Pool Account as of the preceding Local Business Day.
The **ORG** may also send to **ORG** a SWIFT message MT942 in respect of each PB Pool Account at a later time on the same day as agreed by **ORG** and the **ORG** from time to time.
2. Upon and under the condition of the timely receipt of the relevant MT 940 (and MT 942, if applicable) from the **ORG** **ORG** shall
 - a) in case of a credit balance on any PB Pool Account, transfer any amount equal to such credit balance to the Master Account, and
 - b) in case of a debit balance on any PB Pool Account, transfer an amount equal to such debit balance from the Master Account to the PB Pool Account, SUBJECT, however to the conditions of Clause 3.
 - c) The PBTB will be made on the day on which the MT 940/942 messages are received by **ORG** (subject to their timely receipt on that day) IF that day is also a **MISC** (being any day except Saturday and Sunday on which banks in **LOC** are open for general business), otherwise on the following **MISC** **MISC** for value as of that day and NOT taking into account the value dates of the credit and debit balances on the PB Pool Accounts.
3. Transfers from and to the PB Pool Account(s) shall be subject to the following conditions:
 - any transfer to any PB Pool Account may be limited to an amount not exceeding the agreed **maximum amount** per day set out in Annex 1 with regard to the relevant PB Pool Account; and
 - any transfer to or from any PB Pool Account may further be limited to an amount at least equal to or exceeding a **minimum transfer amount** agreed in respect of any PB Pool Account and set out in Annex 1; and
 - any transfer to or from any PB Pool Account may furthermore be subject to a **target balance** agreed in respect of a PB Pool Account and set out in Annex 1 that shall either remain on the PB Pool Account or reached as a result of the transfer from the Master Account, as the case may be; and
 - any transfer to any PB Pool Account is conditional upon sufficient funds being available on the Master Account, taking into account any overdraft facility which may be in place in respect of the Master Account.

If **ORG** determines on any **MISC** that there are no sufficient funds available to cover all debit balances on the Pool Accounts on that day, **ORG** shall be entitled to suspend the cash pooling services and will promptly consult with the Master Account Holder on how to remedy the situation. If no solution acceptable to **ORG** can be agreed within a reasonable time period, **ORG** shall be entitled to terminate the cash pooling services pursuant to Clause 8 of this Agreement, and the Master Account Holder undertakes to fully cover any debit balance then outstanding on the Master Account and/or any Pool Account and to reimburse **ORG** for any incurred losses.

**Form of Consent Letter A –^{ORG} Cash Pooling
Pool Account Holders of ^{ORG} Pool Accounts**

*not required for ^{ORG} Pool Accounts held by the Master Account Holder

From a Pool Account Holder to ^{ORG}

Attn: PERSON

E-Mail-Address: EMAIL

Date: DATE

Our Account(s) IBAN: MISC to MISC
IBAN: MISC to MISC
^{ORG} Pool Accounts")

Dear Sirs,

By sending you this duly signed Consent Letter we hereby explicitly agree and give our consent to ^{ORG} taking the measures set out below in respect of the ^{ORG} Pool Accounts:

1. This Consent Letter will become effective not earlier than 10 **LOC** Business Days (meaning any day except Saturday and Sunday on which banks in **LOC** are open for general business) after the receipt by ^{ORG} of this Consent Letter.
2. We hereby agree that ^{ORG} will perform cash pooling/zero balancing services as described below in respect of the ^{ORG} Pool Accounts and the account of **Mother** with ^{ORG} account IBAN IBAN ^{Mother} **IBAN Mother** ("Master Account") and with respect to the accounts of other account holders ("Pool Account Holders") We confirm that we have been informed of and agree with the operational parameters in respect of the cash pooling determined by ^{ORG} and the Master Account Holder.
3. As of each **MISC** ^{ORG} shall
 - a) transfer to the Master Account from each of the ^{ORG} Pool Accounts showing a day-end credit balance an amount equivalent to such credit balance, and
 - b) transfer from the Master Account to each of the ^{ORG} Pool Accounts showing a day-end debit balance an amount equivalent to such debit balance, PROVIDED that sufficient funds are available on the Master Account, taking into account any overdraft facility which may be in place in respect of the Master Account.
4. The cash pooling/zero balancing will be performed on each **MISC** or not later than on the following **MISC** but always taking into account the correct value dates of each debit and credit balance on each ^{ORG} Pool Account.
5. We acknowledge and agree that ^{ORG} is obliged vis-à-vis the Master Account Holder and the Pool Account Holders to transfer from each ^{ORG} Pool Account each amount which on any **MISC** is transferred or credited to such ^{ORG} Pool Account to the Master Account immediately after such transfer or credit occurs, but in any event not later than in the morning of the next **MISC** and to transfer from the Master Account any amount which on any **MISC** is transferred or credited to the Master Account immediately to the ^{ORG} Pool Account(s) on which there is a debit balance, up to the amount of such debit balance and immediately after the occurrence of such debit balance, but in any event not later than in the morning of the next **MISC** ^{ORG} is further obliged to permit disposals of the Master Account Holder over any credit balance on the Master Account only to the extent that such credit balance is not required for the zero balancing of debit balances on the ^{ORG} Pool Accounts and to permit disposals by any Pool Account Holder over any credit balance on its ^{ORG} Pool Account(s) only to the extent that such credit balance is not required for the zero balancing of debit

balances on the Master Account and/or other **ORG** Pool Accounts.

6. We furthermore agree that any credit balances existing at any time on the **ORG** Pool Accounts shall be held in trust by us acting as trustee (Treuhänder) for the benefit of the Master Account Holder and the other Pool Account Holders (Treugeber) up to the aggregate amount of the debit balances on the Master Account and the relevant **ORG** Pool Accounts and until the cash pooling/zero balancing shall have been performed pursuant to Clause 2 hereof. While acting as trustee hereunder, we shall hold the relevant amount on the **ORG** Pool Accounts in our own name but on behalf, in the interest and for the benefit of the Master Account Holder and/or the relevant Pool Account Holders who shall be the beneficial co-owners of such amount.
7. We give our explicit consent to **ORG** making available information regarding the **ORG** Pool Accounts to the Master Account Holder, to the attention of persons nominated by the Master Account Holder (Authorized Persons), which for the avoidance of doubts may be representatives of Pool Account Holders other than us, in any manner **ORG** and the Master Account Holder may agree, including the sending of account statements and other information by mail, fax or electronic means, or the granting of access to such information via the internet. We are aware of the fact that representatives of Pool Account Holders other than us may be nominated as Authorized Persons which may gain access to account information relating to **ORG** Pool Accounts held by us and cash pooling services performed in such respect.
8. We authorize the Master Account Holder to nominate persons for accessing **ORG** internet site **URL** which provides information to the Master Account Holder (and persons nominated by the Master Account Holder) in respect of **ORG** Pool Accounts and the cash pooling services agreed in a cash pooling agreement between **ORG** and the Master Account Holder.
9. We warrant, represent, undertake and guarantee that
 - a) we have full power and authority to issue this Consent Letter, to participate in the cash pooling/zero balancing as agreed by us herein and to perform our obligations hereunder,
 - b) the issue of this Consent Letter, the participation in the cash pooling/zero balancing as agreed by us herein, and the performance of our obligations hereunder are and will always be in full compliance with any and all present and future laws and legal regulations applicable to us, including, without limitation, rules on the preservation of capital, and do not and will not at any time constitute a breach of any present or future statutory documents or any of our contractual or other obligation of any kind;
 - c) we will ensure that we will at all times receive adequate compensation for any credit balances transferred from our **ORG** Pool Accounts to the Master Account (and that the Master Account Holder will receive adequate compensation for any credit balances transferred to our **ORG** Pool Accounts) as a result of the cash pooling/zero balancing as agreed by us herein, and that we will maintain an adequate financial condition to enable us to participate in the cash pooling/zero balancing in compliance with applicable rules and regulations;
 - d) we will ensure that the Master Account Holder will keep us informed on the terms and conditions of the cash pooling/zero balancing services agreed with **ORG** and in particular of the other Pool Account Holders and Pool Accounts on which these services will be performed.
10. We acknowledge and agree that **ORG** does not assume any obligation or liability whatsoever in connection with the Master Account Holder and some or all of the Pool Account Holders belonging to a group of companies, with the issues referred to in Clauses 6 and 7, or with tax or stamp duty or other legal issues whatsoever. Furthermore, we acknowledge and agree that **ORG** has not and will not and is under no duty whatsoever to advise us or the Master Account Holder on the effects of the cash pooling/zero balancing, and that we and/or the Master Account Holder have obtained or will obtain and

solely rely on the advice of independent qualified tax, legal and other appropriate advisers in this connection. We undertake to indemnify **ORG** and hold it harmless in respect of any damages or losses arising in connection with this Consent Letter and the cash pooling/zero balancing services performed hereunder except in cases of willful misconduct or gross negligence on the part of **ORG**. Any costs, expenses or dues (including any stamp duties) which may arise now or in the future in connection with this Consent Letter or the cash pooling/zero balancing services performed in respect of our **ORG** Pool Accounts shall be borne by us.

11. Without limitation to clause 10 we acknowledge and agree that **ORG** shall be liable only for pecuniary damages suffered as a direct result of gross negligence or wilful misconduct on the part of **ORG**

In the event that **ORG** is liable for any damage caused by a defect in its IT equipment for which **ORG** is not responsible, the liability of **ORG** shall be limited to EUR 20,000.00 per event of damage and affected account holder, but in any case to a maximum total of EUR 400,000.00 for all customers. Under no circumstances can **ORG** be held liable if the damage was caused by an independent third party or otherwise by an unavoidable event which is due neither to a defect in the condition nor to the malfunctioning of the IT equipment of **ORG**

12. We agree to deliver to **ORG** [copies of our audited accounts within 6 months after the end of the financial period for which they have been prepared], as well as any information in relation to our business operations and financial condition as **ORG** may reasonably request, and we shall promptly inform **ORG** of any material adverse change of our financial condition, including in particular any event or circumstances which may lead to our insolvency.

13. Changes of this Consent Letter shall be valid only if made in writing. If any provision of this Consent Letter is or becomes invalid or unenforceable, the validity of the other provisions hereof shall not be affected and the invalid or unenforceable provision shall be deemed replaced by a valid and enforceable substitute provision reflecting as closely as possible the purpose of the invalid or unenforceable provision.

14. We are entitled to revoke this Consent Letter as of the end of each calendar month by giving you one month's notice in writing, and with immediate effect in case of a material adverse change of our financial condition. We agree that **ORG** may terminate the cash pooling/zero balancing services described herein at the end of each calendar month giving one month's written notice and that **ORG** is entitled to an immediate termination of such services at any time for good cause, including without limitation upon the occurrence of any of the following events:
- a) a material deterioration of our financial situation, including in particular any event or circumstances which in the reasonable opinion of **ORG** may lead to us becoming insolvent;
 - b) any information regarding our situation or that of the Master Account Holder delivered to **ORG** in connection with the cash pooling services is materially incorrect;
 - c) any violation of any material obligation agreed by us or the Master Account Holder in connection with the cash pooling services which is not remedied within any time period granted by **ORG** or
 - d) the cash pooling services are suspended for lack of sufficient funds and no solution can be agreed with the Master Account Holder within a time period acceptable to **ORG**
15. This Consent Letter shall be governed by **LOC** law.
16. The following business conditions of **ORG** shall apply: General Terms and Conditions of **ORG** **ORG** which are available on **ORG** website: URL The Customer confirms that it is familiar with and accepts the **ORG**
17. Any disputes arising in connection with this Agreement shall be submitted to the exclusive jurisdiction of the commercial courts for **LOC** to whose jurisdiction the User Company irrevocably submits. Notwithstanding this jurisdiction clause, **ORG** shall be entitled to submit any dispute to any other court accepting its competence in **LOC** or abroad.

Company name of **ORG** Pool Account Holder

Place

Date

Legally represented by

Signature:

First Name & Surname in capacity as

First Name & Surname in capacity as

Form of Consent Letter B - RBZB

Bank Pool Account Holders at Bank

*not required for **Bank** Pool Accounts held by the Master Account Holder

From a Pool Account Holder to **ORG**

Attn: **MISC** to **MISC**

E-Mail-Address: **MISC** to **MISC**

Date: **MISC** to enter a date

Our Account(s) **IBAN:** IBAN **Mother**

IBAN: **MISC** to **MISC**

Bank Pool Accounts")

Held with

MISC to **MISC**

Bank

Dear Sirs,

1. This Consent Letter will become effective not earlier than 10 **LOC** Business Days (meaning any day except Saturday and Sunday on which banks in **LOC** are open for general business) after the receipt by **ORG** of this Consent Letter.
2. We hereby agree that **ORG** will perform zero balancing services as described below in respect of the **Bank** Pool Accounts and the account of **Mother** with **ORG** account IBAN IBAN **Mother** (hereinafter referred to as the "**Master Account**") and with respect to the accounts of other account holders (hereinafter "**Pool Account Holders**") We confirm that we have been informed of and agree with the operational parameters in respect of the cash pooling determined by **ORG** and the Master Account Holder.
3. Not later than 9 a.m. CET on each **MISC** the **Bank** will send to **ORG** a SWIFT message MT940 informing **ORG** of the credit or debit balance on each **Bank** Pool Account as of the preceding **MISC**
4. Upon the receipt of the relevant MT940 messages, **ORG** shall
 - a) transfer to the Master Account from each of the **Bank** Pool Accounts showing a day end credit balance, an amount equal to such credit balance, and
 - b) transfer from the Master Account to each of the **Bank** Pool Accounts showing a day-end debit balance, an amount equal to such debit balance, PROVIDED that such transfer from the Master Account shall be made only
 - up to an amount not exceeding the agreed **maximum amount** per day set out below,

Bank Pool Account	Maximum Amount
00000	EUR 1.000.000.000,00
	EUR 500.000.000,00

- if and to the extent that sufficient funds are available on the Master Account, taking into account any overdraft facility in respect of the Master Account.

We acknowledge and agree that if **ORG** determines on any **MISC** that there are no sufficient funds available to cover all debit balances on the Pool Accounts on that day, **ORG** shall be

entitled to suspend the cash pooling services and will promptly consult with the Master Account Holder on how to remedy the situation. If no solution acceptable to **ORG** can be agreed, **ORG** shall be entitled to terminate the cash pooling services.

5. Subject to the timely receipt of the relevant MT940 messages, the RBZB shall be made on the same **MISC** or not later than on the next **MISC** but always taking into account the correct value dates of each debit and credit balance on the relevant **Bank** Pool Account.
6. We give our explicit consent to **ORG** making available information regarding the **Bank** Pool Accounts to the Master Account Holder, to the attention of persons nominated by the Master Account Holder (which for the avoidance of doubts may be representatives of Pool Account Holders other than us), in any manner **ORG** and the Master Account Holder may agree, including the sending of account statements and other information by mail, fax or electronic means, or the granting of access to such information via the internet. We are aware of the fact that representatives of Pool Account Holders other than us may be nominated as Authorized Persons which may gain access to account information relating to **ORG** Pool Accounts held by us and cash pooling services performed in such respect.
7. We authorize the Master Account Holder to nominate persons for accessing **ORG** internet site **URL** which provides information to the Master Account Holder (and persons nominated by the Master Account Holder) in respect of **ORG** Pool Accounts and the cash pooling services agreed in a cash pooling agreement between **ORG** and the Master Account Holder.
8. We warrant, represent, guarantee and confirm that
 - a) we have full power and authority to issue this Consent Letter, to participate in the RBZB as agreed by us herein and to perform our obligations hereunder;
 - b) the issuance of this Consent Letter, the participation in the RBZB as agreed by us herein, and the performance of our obligations hereunder are and will always be in full compliance with any and all present and future laws and legal regulations applicable to us, including, without limitation, rules on the preservation of capital, and do not and will not at any time constitute a breach of any present or future statutory documents or any of our contractual or other obligation of any kind;
 - c) we will ensure that we will at all times receive adequate compensation for any credit balances transferred from our **ORG** Pool Accounts to the Master Account (and that the Master Account Holder will receive adequate compensation for any credit balances transferred to our **ORG** Pool Accounts) as a result of the cash pooling/zero balancing as agreed by us herein, and that we will maintain an adequate financial condition to enable us to participate in the cash pooling/zero balancing in compliance with applicable rules and regulations;
 - d) we will ensure that the Master Account Holder will keep us informed on the terms and conditions of the RBZB services performed by **ORG** and in particular of the other Pool Account Holders and Pool Accounts on which these services will be performed.

9. We acknowledge and agree that **ORG** does not assume any obligation or liability whatsoever in connection with the Master Account Holder and some or all of the Pool Account Holders belonging to a group of companies, with the issues referred to in Clause 8, or with tax or stamp duty or other legal issues whatsoever. Furthermore we acknowledge and agree that **ORG** has not and will not and is under no duty whatsoever to advise us or the Master Account Holder on the effects of the cash pooling, and that we and/or the Master Account Holder have obtained or will obtain and solely rely on the advice of independent qualified tax, legal and other appropriate advisers in this connection.
10. We undertake to indemnify **ORG** and hold it harmless in respect of any damages or losses arising in connection with this Consent Letter and the cash pooling services performed hereunder except in cases of wilful misconduct or gross negligence on the part of **ORG**. Any costs, expenses or dues (including any stamp duties) which may arise now or in the future in connection with this Consent Letter or the RBZB services agreed herein shall be borne by us.
11. Without limitation to clause 10 we acknowledge and agree that **ORG** shall be liable only for pecuniary damages suffered as a direct result of gross negligence or wilful misconduct on the part of **ORG**.

In the event that **ORG** is liable for any damage caused by a defect in its IT equipment for which **ORG** is not responsible, the liability of **ORG** shall be limited to EUR 20,000.00 per event of damage and affected account holder, but in any case to a maximum total of EUR 400,000.00 for all customers. Under no circumstances can **ORG** be held liable if the damage was caused by an independent third party or otherwise by an unavoidable event which is due neither to a defect in the condition nor to the malfunctioning of the IT equipment of **ORG**.
12. We agree to deliver to **ORG** copies of our audited accounts within 6 months after the end of the financial period for which they have been prepared, as well as any information in relation to our business operations and financial position as **ORG** may reasonably request, and we shall promptly inform **ORG** of any material adverse change of our financial condition, including in particular any event or circumstances which may lead to our insolvency.
13. We are entitled to revoke this Consent Letter as of the end of each calendar month by giving you one month's notice in writing, and with immediate effect in case of a material adverse change of our financial condition. We agree that **ORG** may terminate the **ORG** services described herein at the end of each calendar month giving one month's written notice and that **ORG** is entitled to an immediate termination of such services at any time for good cause, including without limitation upon the occurrence in respect of the Master Account Holder or us of any of the following events:
 - a) a material deterioration of our financial situation, including in particular any event or circumstances which in the reasonable opinion of **ORG** may lead to us becoming insolvent;
 - b) any information regarding our situation or that of the Master Account Holder delivered to **ORG** in connection with the cash pooling services is materially incorrect;
 - c) any violation of any material obligation agreed by us or the Master Account Holder in connection with the cash pooling services which is not remedied within any time period granted by **ORG** or
 - d) the cash pooling services are suspended for lack of sufficient funds and no solution can be agreed with the Master Account Holder within a time period acceptable to **ORG**.
14. Changes of this Consent Letter shall be valid only if made in writing. If any provision of this Consent Letter is or becomes invalid or unenforceable, the validity of the other provisions hereof shall not be affected and the invalid or unenforceable provision shall be deemed replaced by a valid and enforceable

substitute provision reflecting as closely as possible the purpose of the invalid or unenforceable provision.

15. This Consent Letter shall be governed by LOC law.
16. The following business conditions of **ORG** shall apply: General Terms and Conditions of **ORG** **ORG** which are available on **ORG** website: URL The Customer confirms that it is familiar with and accepts the **ORG**
17. Any disputes arising in connection with this Agreement shall be submitted to the exclusive jurisdiction of the commercial courts for **LOC** to whose jurisdiction the User Company irrevocably submits. Notwithstanding this jurisdiction clause, **ORG** shall be entitled to submit any dispute to any other court accepting its competence in LOC or abroad.

Company name of Bank Pool Account Holder

Street: MISC to MISC
No: MISC to MISC
Postal Code: MISC to MISC
Town: MISC to MISC
Country (ISO Code): MISC to MISC

Place

Date

Legally represented by

Signature:

First Name & Surname in capacity as

First Name & Surname in capacity as

Form of Consent Letter C – CBTB
CB Pool Account Holders at Partner Banks

*not required for Cross-Border Pool Accounts held by the Master Account Holder

From a CB Pool Account Holder to **ORG**

Attn: **MISC** to **MISC**

E-Mail-Address: **MISC** to **MISC**

Date: **MISC** to enter a date

Our Account(s) **IBAN:** **MISC** to **MISC**
IBAN: **MISC** to **MISC**
("CB Pool Accounts")
Held with **MISC** to **MISC**
ORG

Dear Sirs,

By sending you this duly signed Consent Letter we hereby explicitly agree and give our consent to **ORG** taking the measures set out below in respect of the CB Pool Accounts:

1. This Consent Letter will become effective not earlier than 10 **LOC** Business Days (meaning any day except Saturday and Sunday on which banks in **LOC** are open for general business) after the receipt by **ORG** of this Consent Letter and PROVIDED that the cooperation agreement between **ORG** and the **ORG** is in place.
2. We hereby agree that **ORG** will perform the following CBTB services in the form of a target balancing in respect of our CB Pool Accounts and the account of **Mother** with **ORG** account IBAN **IBAN Mother** **IBAN Mother** (hereinafter referred to as the "**Master Account**").
3. Not later than 9 a.m. CET on each day except Saturday and Sunday on which banks are open for general business at the seat of the **ORG** ("**Local Business Day**") the **ORG** shall send a SWIFT message MT 940 to **ORG** informing **ORG** of the credit or debit balance on each CB Pool Account as of the preceding Local Business Day.

The **ORG** may also send to **ORG** a SWIFT message MT942 in respect of each CB Pool Account at a later time on the same day as agreed by **ORG** and the **ORG** from time to time.

4. Upon and under the condition of the timely receipt of the relevant MT 940 (and MT 942, if applicable) from the **ORG** **ORG** shall
 - a) in case of a credit balance on any CB Pool Account, transfer any amount equal to such credit balance to the Master Account by a SWIFT message MT 101, and
 - b) in case of a debit balance on any CB Pool Account, transfer an amount equal to such debit balance from the Master Account to the CB Pool Account by a SWIFT message in the MT 103 format as of the same value day, PROVIDED that

- any transfer to any CB Pool Account is conditional upon sufficient funds being available on the Master Account, taking into account any overdraft facility which may be in place in respect of the Master Account, and
- any transfer to any CB Pool Account is limited to a daily **Maximum Amount** set out below:
- any transfer to or from any CB Pool Account is limited to an amount at least equal to or exceeding the **minimum transfer amount** set out below in respect of any CB Pool Account and set out in Annex 1, and
- any transfer from and to a CP Pool Account is subject to the **target balance** set out below agreed in respect of each CP Pool Account.

CB Pool Account IBAN	Currency	Maximum Amount	Minimum Transfer Amount	Target Balance
--- -- -- --- --	EUR	ID	ID	EUR 100.000,00
--- -- -- --- --	EUR	EUR 300.000,00	ID	EUR 100.000,00
MISC to MISC MISC	Ccy	EUR MISC to enter amount	EUR MISC to enter amount	EUR MISC to enter amount

- The CBTB will be made on the day on which the MT 940/942 messages are received by **ORG** if that day is also a **MISC** otherwise on the following **MISC** for value as of that day and NOT taking into account the value dates of the credit and debit balances on the CB Pool Accounts.
- We acknowledge, agree and confirm that
 - the CBTB on the CB Pool Account and the Master Account can only be performed under the condition of the timely receipt by **ORG** of the relevant SWIFT messages from the **ORG** and that any delays in sending such messages may result in the CBTB being performed only on the following **MISC**
MISC
 - we shall not allow any debit balance on any CB Pool Account to exceed the amount agreed with the Master Account Holder, and we are aware that there must at all times be sufficient funds available on the Master Account to cover debit balances on the CB Pool Account(s);
 - ORG** and the **ORG** are entitled to immediately stop the CBTB services if the conditions set out in b) above are not fulfilled; and we assumes full liability for, and will hold **ORG** and the **ORG** harmless in respect of any damages or losses incurred by any of them as a result of our non-compliance with the duties undertaken herein;
 - if **ORG** determines on any **MISC** that there are no sufficient funds available to cover all debit balances on the Pool Accounts on that day, **ORG** shall be entitled to suspend the cash pooling services and will promptly consult with the Master Account Holder on how to remedy the situation. If no solution acceptable to **ORG** can be agreed, **ORG** shall be entitled to terminate the cash pooling services.

7. We give our explicit consent to **ORG** making available information regarding the CB Pool Accounts to the Master Account Holder, to the attention of persons nominated by the Master Account Holder (which for the avoidance of doubts may be representatives of Pool Account Holders other than us), in any manner **ORG** and the Master Account Holder may agree, including the sending of account statements and other information by mail, fax or electronic means, or the granting of access to such information via the internet. We are aware of the fact that representatives of Pool Account Holders other than us may be nominated as Authorized Persons which may gain access to account information relating to **ORG** Pool Accounts held by us and cash pooling services performed in such respect.
8. We authorize the Master Account Holder to nominate persons for accessing **ORG** internet site **URL** which provides information to the Master Account Holder (and persons nominated by the Master Account Holder) in respect of **ORG** Pool Accounts and the cash pooling services agreed in a cash pooling agreement between **ORG** and the Master Account Holder.
9. We warrant, represent, undertake and guarantee that
- a) we have full power and authority to issue this Consent Letter, to participate in the CBTB as agreed by us herein and to perform our obligations hereunder;
 - b) the issuance of this Consent Letter, the participation in the CBTB as agreed by us herein, and the performance of our obligations hereunder are and will always be in full compliance with any and all present and future laws and legal regulations applicable to us, including, without limitation, rules on the preservation of capital, and do not and will not at any time constitute a breach of any present or future statutory documents or any of our contractual or other obligation of any kind;
 - c) we will ensure that we will at all times receive adequate compensation for any credit balances transferred from our **ORG** Pool Accounts to the Master Account (and that the Master Account Holder will receive adequate compensation for any credit balances transferred to our **ORG** Pool Accounts) as a result of the cash pooling/zero balancing as agreed by us herein, and that we will maintain an adequate financial condition to enable us to participate in the cash pooling/zero balancing in compliance with applicable rules and regulations;
 - d) we will ensure that the Master Account Holder will keep us informed on the terms and conditions of the Cash Pooling services performed by **ORG** and in particular of the other Pool Account Holders and the Pool Accounts on which these services will be performed.
10. We acknowledge and agree that **ORG** does not assume any obligation or liability whatsoever in connection with the Master Account Holder and some or all of the Pool Account Holders belonging to a group of companies, with the issues referred to in Clause 9, or with tax or stamp duty or other legal issues whatsoever. Furthermore we acknowledge and agree that **ORG** has not and will not and is under no duty whatsoever to advise us or the Master Account Holder on the effects of the cash pooling, and that we and/or the Master Account Holder have obtained or will obtain and solely rely on the advice of independent qualified tax, legal and other appropriate advisers in this connection.
11. Any costs, expenses or dues (including any stamp duties) which may arise now or in the future in connection with this Consent Letter or the CBTB services performed in respect of our CB Pool Accounts hereunder shall be borne by us.
12. Without limitation to clause 10 we acknowledge and agree that **ORG** shall be liable only for pecuniary damages suffered as a direct result of gross negligence or wilful misconduct on the part of **ORG**

In the event that **ORG** is liable for any damage caused by a defect in its IT equipment for which **ORG** is not responsible, the liability of **ORG** shall be limited to EUR 20,000.00 per event of damage and affected

account holder, but in any case to a maximum total of EUR 400,000.00 for all customers. Under no circumstances can ORG be held liable if the damage was caused by an independent third party or otherwise by an unavoidable event which is due neither to a defect in the condition nor to the malfunctioning of the IT equipment of ORG

13. We agree to deliver to ORG copies of our audited accounts within 6 months after the end of the financial period for which they have been prepared, as well as any information in relation to our business operations and financial position as ORG may reasonably request, and we shall promptly inform ORG of any material adverse change of our financial condition, including in particular any event or circumstances which may lead to our insolvency.
14. We are entitled to revoke this Consent Letter as of the end of each calendar month by giving you one month's notice in writing, and with immediate effect in case of a material adverse change of our financial condition. We agree that ORG may terminate the CBTB services described herein at the end of each calendar month giving one month's written notice and that the Master Account Holder and ORG are entitled to an immediate termination of such services at any time for good cause, regarding ORG including without limitation, upon the occurrence in respect of the Master Account Holder or us of any of the events set out below:
 - a) a material deterioration of our financial situation, including in particular any event or circumstances which in the reasonable opinion of ORG may lead to us becoming insolvent;
 - b) any information regarding our situation or that of the Master Account Holder delivered to ORG in connection with the cash pooling services is materially incorrect;
 - c) any violation of any material obligation agreed by us or the Master Account Holder in connection with the cash pooling services which is not remedied within any time period granted by ORG or
 - d) the cash pooling services are suspended for lack of sufficient funds and no solution can be agreed with the Master Account Holder within a time period acceptable to ORG
15. Changes of this Consent Letter shall be valid only if made in writing. If any provision of this Consent Letter is or becomes invalid or unenforceable, the validity of the other provisions hereof shall not be affected and the invalid or unenforceable provision shall be deemed replaced by a valid and enforceable substitute provision reflecting as closely as possible the purpose of the invalid or unenforceable provision.
16. This Consent Letter shall be governed by LOC law.
17. The following business conditions of ORG shall apply: General Terms and Conditions of ORG ORG which are available on ORG website: URL The Customer confirms that it is familiar with and accepts the ORG
18. Any disputes arising in connection with this Agreement shall be submitted to the exclusive jurisdiction of the commercial courts for LOC to whose jurisdiction the User Company irrevocably submits. Notwithstanding this jurisdiction clause, ORG shall be entitled to submit any dispute to any other court accepting its competence in LOC or abroad.

Company name of CB Pool Account Holder

Street: MISC to MISC

No: MISC to MISC

Postal Code: MISC to MISC

Town: MISC to MISC

Country (ISO Code): MISC to MISC

Place

Date

Legally represented by

Signature:

First Name & Surname in capacity as

First Name & Surname in capacity as

CB Pool Account Holders at Partner Banks

*not required for Cross-Border Pool Accounts held by the Master Account Holder

From a CB Pool Account Holder to **ORG**

Attn: **MISC** to **MISC**

E-Mail-Address: **MISC** to **MISC**

Date: **MISC** to enter a date

Our Account(s) IBAN: **MISC** to **MISC**

IBAN: **MISC** to **MISC**

("CB Pool Accounts")

Held with **MISC** to **MISC**

ORG

Dear Sirs,

By sending you this duly signed Consent Letter we hereby explicitly agree and give our consent to **ORG** taking the measures set out below in respect of the CB Pool Accounts:

1. This Consent Letter will become effective not earlier than 10 **LOC** Business Days (meaning any day except Saturday and Sunday on which banks in **LOC** are open for general business) after the receipt by **ORG** of this Consent Letter and PROVIDED that the cooperation agreement between **ORG** and the **ORG** is in place.
2. We hereby agree that **ORG** will perform the following CBZB services in the form of a zero balancing in respect of our CB Pool Accounts and the account of **Mother** with **ORG** account IBAN **IBAN Mother** **IBAN Mother** (hereinafter referred to as the "**Master Account**");
 - a) On each day except Saturday and Sunday on which the **ORG** is open for general business ("**Local Business Day**") the **ORG** will perform a local zero balancing involving the CB Pool Account(s) maintained by it and the Master Nostro Account as set out below in compliance with the value dating procedure applied by the **ORG** subject to its internal rules and technical possibilities.
 - Any credit balance on the CB Pool Account(s) will be transferred to the Master Nostro Account, and
 - In case of any debit balance on the CB Pool Account(s), the relevant amount will be debited to the Master Nostro Account and transferred to the CB Pool Account, subject HOWEVER to the conditions set out in Clause 3:
 - b) On each Local Business Day the **ORG** will send to **ORG** SWIFT messages MT940 in respect of the CB Account(s) and the Master Nostro Account to be received by **ORG** not later than 7:00 a.m. CET on the next day. The **ORG** will also send to **ORG** SWIFT messages MT942 in respect of the CB Pool Account(s) and the Master Nostro Account at times agreed by **ORG** and the **ORG** from time to time.
 - c) Following the receipt of the relevant MT940 messages, **ORG** will credit amounts equal to the credit balances on the Master Nostro Account to the Master Account and debit the Master Account with amounts equal to any debit balances on the Master Nostro Account.
3. The zero balancing of debit balances on the CB Pool Account(s) with the Master Nostro Account (and subsequently with the Master Account) is subject to two conditions:

- a) the zero balancing of debit balances on any CB Pool Account will be allowed only up to a daily **maximum amount** maximum amount set out below

CB Pool Account IBAN		Maximum Amount	
MISC	to MISC	EUR MISC	to enter amount
MISC	to MISC	EUR MISC	to enter amount

- b) and any zero balancing of debit balances on any CB Pool Account is subject to the availability of sufficient funds on the Master Account, taking into account a possible overdraft facility on the Master Account. If on any MISC **ORG** determines that the funds available on the Master Account are not sufficient to cover a debit balance on any CB Pool Account, **ORG** shall be entitled to order the **ORG** **ORG** not to debit the Master Nostro Account and to immediately stop the zero balancing of the CB Pool Account.
4. The CBZB services will be performed by **ORG** on the day on which the MT 940 messages are received by **ORG**. If that day is also a **MISC** otherwise on the following **MISC** but as of the correct value date of each debit and credit balance on the CB Pool Accounts, in compliance with the value dating procedure applied by the **ORG** subject to its internal the rules and technical possibilities.
5. We acknowledge, agree and confirm that
- a) the zero balancing of the CB Pool Account and the Master Account can only be performed under the condition of the timely receipt by **ORG** of the relevant SWIFT messages from the **ORG** and that any delays in sending such messages may result in the CBZB being performed only on the following **MISC**
- b) we shall not allow any debit balance on any CB Pool Account to exceed the Maximum Amount per day set out above in respect of the relevant CB Pool Account, and we are aware that the zero balancing of the CB Pool Account via the Master Nostro Account will not be (fully) performed on any day when there are not sufficient funds available on the Master Account to cover (the full) debit balance(s) on the CB Pool Account(s) or if the cash pooling agreement with the Master Account Holder has been terminated;
- c) **ORG** and the **ORG** are entitled to immediately stop the CBZB services if the conditions set out in b) above are not fulfilled; and we assumes full liability for, and will hold **ORG** and the **ORG** harmless in respect of any damages or losses incurred by any of them as a result of our non-compliance with the duties undertaken herein;
- d) if **ORG** determines on any MISC that there are no sufficient funds available to cover all debit balances on the Pool Accounts on that day, **ORG** shall be entitled to suspend the cash pooling services and will promptly consult with the Master Account Holder on how to remedy the situation. If no solution acceptable to **ORG** can be agreed, **ORG** shall be entitled to terminate the cash pooling services.
6. We give our explicit consent to **ORG** making available information regarding the CB Pool Accounts to the Master Account Holder, to the attention of persons nominated by the Master Account Holder (which for the avoidance of doubts may be representatives of Pool Account Holders other than us), in any manner **ORG** and the Master Account Holder may agree, including the sending of account statements and other information by mail, fax or electronic means, or the granting of access to such information via the internet. We are aware of the fact that representatives of Pool Account Holders other than us may be nominated as Authorized Persons which may gain access to account information relating to **ORG** Pool Accounts held by us and cash pooling services performed in such respect.

7. We authorize the Master Account Holder to nominate persons for accessing ORG internet site **URL** which provides information to the Master Account Holder (and persons nominated by the Master Account Holder) in respect of **ORG** Pool Accounts and the cash pooling services agreed in a cash pooling agreement between **ORG** and the Master Account Holder.
8. We warrant, represent, undertake and guarantee that
- a) we have full power and authority to issue this Consent Letter, to participate in the CBZB as agreed by us herein and to perform our obligations hereunder;
 - b) the issuance of this Consent Letter, the participation in the CBZB as agreed by us herein, and the performance of our obligations hereunder are and will always be in full compliance with any and all present and future laws and legal regulations applicable to us, including, without limitation, rules on the preservation of capital, and do not and will not at any time constitute a breach of any present or future statutory documents or any of our contractual or other obligation of any kind;
 - c) we will ensure that we will at all times receive adequate compensation for any credit balances transferred from our **ORG** Pool Accounts to the Master Account (and that the Master Account Holder will receive adequate compensation for any credit balances transferred to our **ORG** Pool Accounts) as a result of the cash pooling/zero balancing as agreed by us herein, and that we will maintain an adequate financial condition to enable us to participate in the cash pooling/zero balancing in compliance with applicable rules and regulations;
 - d) we will ensure that the Master Account Holder will keep us informed on the terms and conditions of the Cash Pooling services performed by **ORG** and in particular of the other Pool Account Holders and the Pool Accounts on which these services will be performed.
9. We acknowledge and agree that **ORG** does not assume any obligation or liability whatsoever in connection with the Master Account Holder and some or all of the Pool Account Holders belonging to a group of companies, with the issues referred to in Clause 8, or with tax or stamp duty or other legal issues whatsoever. Furthermore we acknowledge and agree that **ORG** has not and will not and is under no duty whatsoever to advise us or the Master Account Holder on the effects of the cash pooling, and that we and/or the Master Account Holder have obtained or will obtain and solely rely on the advice of independent qualified tax, legal and other appropriate advisers in this connection.

10. Any costs, expenses or dues (including any stamp duties) which may arise now or in the future in connection with this Consent Letter or the CBZB performed in respect of our CB Pool Accounts hereunder shall be borne by us.
11. Without limitation to clause 10 we acknowledge and agree that **ORG** shall be liable only for pecuniary damages suffered as a direct result of gross negligence or willful misconduct on the part of **ORG**
- In the event that **ORG** is liable for any damage caused by a defect in its IT equipment for which **ORG** is not responsible, the liability of **ORG** shall be limited to EUR 20,000.00 per event of damage and affected account holder, but in any case to a maximum total of EUR 400,000.00 for all customers. Under no circumstances can **ORG** be held liable if the damage was caused by an independent third party or otherwise by an unavoidable event which is due neither to a defect in the condition nor to the malfunctioning of the IT equipment of **ORG**
12. We agree to deliver to **ORG** copies of our audited accounts within 6 months after the end of the financial period for which they have been prepared, as well as any information in relation to our business operations and financial position as **ORG** may reasonably request, and we shall promptly inform **ORG** of any material adverse change of our financial condition, including in particular any event or circumstance which may lead to our insolvency.
13. We are entitled to revoke this Consent Letter as of the end of each calendar month by giving you one month's notice in writing, and with immediate effect in case of a material adverse change of our financial condition. We agree that **ORG** may terminate the CBZB services described herein at the end of each calendar month giving one month's written notice and that the Master Account Holder and **ORG** are entitled to an immediate termination of such services at any time for good cause, regarding **ORG** including without limitation, upon the occurrence in respect of the Master Account Holder or us of any of the events set out below:
- a) a material deterioration of our financial situation, including in particular any event or circumstances which in the reasonable opinion of **ORG** may lead to us becoming insolvent
 - b) any information regarding our situation or that of the Master Account Holder delivered to **ORG** in connection with the cash pooling services is materially incorrect;
 - c) any violation of any material obligation agreed by us or the Master Account Holder in connection with the cash pooling services which is not remedied within any time period granted by **ORG** or
 - d) the cash pooling services are suspended for lack of sufficient funds and no solution can be agreed with the Master Account Holder within a time period acceptable to **ORG**
14. Changes of this Consent Letter shall be valid only if made in writing. If any provision of this Consent Letter is or becomes invalid or unenforceable, the validity of the other provisions hereof shall not be affected and the invalid or unenforceable provision shall be deemed replaced by a valid and enforceable substitute provision reflecting as closely as possible the purpose of the invalid or unenforceable provision.
15. This Consent Letter shall be governed by **LOC** law.
16. The following business conditions of **ORG** shall apply: General Terms and Conditions of **ORG** **ORG** which are available on **ORG** website: URL The Customer confirms that it is familiar with

and accepts the ORG

17. Any disputes arising in connection with this Agreement shall be submitted to the exclusive jurisdiction of the commercial courts for **LOC** to whose jurisdiction the User Company irrevocably submits. Notwithstanding this jurisdiction clause, **ORG** shall be entitled to submit any dispute to any other court accepting its competence in LOC or abroad.

Company name of CB Pool Account Holder

Place

Date

Legally represented by

Signature:

First Name & Surname in capacity as

First Name & Surname in capacity as

Form of Consent Letter D – CBZB
CB Pool Account Holders at Partner Banks

*not required for Cross-Border Pool Accounts held by the Master Account Holder

From a CB Pool Account Holder to **ORG** and to **ORG**

Attn: **MISC** to **MISC**

E-Mail-Address: **MISC** to **MISC**

Date: **MISC** to enter a date

Our Account(s) IBAN: **MISC** to **MISC**
IBAN: **MISC** to **MISC**
("CB Pool Accounts")
Held with **MISC** to **MISC**
ORG

Dear Sirs,

By sending you this duly signed Consent Letter we hereby explicitly agree and give our consent to **ORG** and **ORG** taking the measures set out below in respect of the CB Pool Accounts:

1. This Consent Letter will become effective not earlier than 10 **LOC** Business Days (meaning any day except Saturday and Sunday on which banks in **LOC** are open for general business) after the receipt by **ORG** of this Consent Letter and simultaneously not earlier than 10 Local Business Days (as defined in this Consent Letter) after the receipt by **ORG** of this Consent Letter and PROVIDED that the cooperation agreement between **ORG** and the **ORG** is in place.
2. We hereby agree that **ORG** and **ORG** will perform the following CBZB services in the form of a zero balancing in respect of our CB Pool Accounts and the account of **Mother** with **ORG** account IBAN **IBAN Mother** (hereinafter referred to as the "**Master Account**"):
 - a) On each day except Saturday and Sunday on which the **ORG** is open for general business ("**Local Business Day**") the **ORG** will perform a local zero balancing involving the CB Pool Account(s) maintained by it and the Master Nostro Account as set out below in compliance with the value dating procedure applied by the **ORG** subject to its internal rules and technical possibilities.
 - Any credit balance on the CB Pool Account(s) will be transferred to the Master Nostro Account, and
 - In case of any debit balance on the CB Pool Account(s), the relevant amount will be debited to the Master Nostro Account and transferred to the CB Pool Account, subject HOWEVER to the conditions set out in Clause 3:
 - b) On each Local Business Day the **ORG** will send to **ORG** SWIFT messages MT940 in respect of the CB Account(s) and the Master Nostro Account to be received by **ORG** not later than 7:00 a.m. CET on the next day. The **ORG** will also send to **ORG** SWIFT messages MT942 in respect of the CB Pool Account(s) and the Master Nostro Account at times agreed by **ORG** and the **ORG** from time to time.
 - c) Following the receipt of the relevant MT940 messages, **ORG** will credit amounts equal to the credit balances on the Master Nostro Account to the Master Account, and debit the Master Account with amounts equal to any debit balances on the Master Nostro Account.
3. The zero balancing of debit balances on the CB Pool Account(s) with the Master Nostro Account (and subsequently with the Master Account) is subject to two conditions:

- a) the zero balancing of debit balances on any CB Pool Account will be allowed only up to a daily **maximum amount** maximum amount set out below

CB Pool Account IBAN	Maximum Amount
MISC to MISC	EUR MISC to enter amount
MISC to MISC	EUR MISC to enter amount

- b) and any zero balancing of debit balances on any CB Pool Account is subject to the availability of sufficient funds on the Master Account, taking into account a possible overdraft facility on the Master Account. If on any MISC **ORG** determines that the funds available on the Master Account are not sufficient to cover a debit balance on any CB Pool Account, **ORG** shall be entitled to order the **ORG** **ORG** not to debit the Master Nostro Account and to immediately stop the zero balancing of the CB Pool Account.
4. The CBZB services will be performed by **ORG** on the day on which the MT940 messages are received by **ORG** if that day is also a MISC otherwise on the following MISC but as of the correct value date of each debit and credit balance on the CB Pool Accounts, in compliance with the value dating procedure applied by the **ORG** subject to its internal the rules and technical possibilities.
5. We acknowledge, agree and confirm that
- a) the zero balancing of the CB Pool Account and the Master Account can only be performed under the condition of the timely receipt by **ORG** of the relevant SWIFT messages from the **ORG** and that any delays in sending such messages may result in the CBZB being performed only on the following **MISC**
- b) we shall not allow any debit balance on any CB Pool Account to exceed the Maximum Amount per day set out above in respect of the relevant CB Pool Account, and we are aware that the zero balancing of the CB Pool Account via the Master Nostro Account will not be (fully) performed on any day when there are not sufficient funds available on the Master Account to cover (the full) debit balance(s) on the CB Pool Account(s) or if the cash pooling agreement with the Master Account Holder has been terminated;
- c) **ORG** and the **ORG** are entitled to immediately stop the CBZB services if the conditions set out in b) above are not fulfilled; and we assumes full liability for, and will hold **ORG** and the **ORG** harmless in respect of any damages or losses incurred by any of them as a result of our non-compliance with the duties undertaken herein;
- d) if **ORG** determines on any MISC that there are no sufficient funds available to cover all debit balances on the Pool Accounts on that day, **ORG** shall be entitled to suspend the cash pooling services and will promptly consult with the Master Account Holder on how to remedy the situation. If no solution acceptable to **ORG** can be agreed, **ORG** shall be entitled to terminate the cash pooling services.
6. We give our explicit consent to **ORG** making available information regarding the CB Pool Accounts to the Master Account Holder, to the attention of persons nominated by the Master Account Holder (which for the avoidance of doubts may be representatives of Pool Account Holders other than us), in any manner **ORG** and the Master Account Holder may agree, including the sending of account statements and other information by mail, fax or electronic means, or the granting of access to such information via the internet. We are aware of the fact that representatives of Pool Account Holders other than us may be nominated as Authorized Persons which may gain access to account information relating to **ORG** Pool Accounts held by us and cash pooling services performed in such respect.

7. We authorize the Master Account Holder to nominate persons for accessing ORG internet site **URL** which provides information to the Master Account Holder (and persons nominated by the Master Account Holder) in respect of ORG Pool Accounts and the cash pooling services agreed in a cash pooling agreement between ORG and the Master Account Holder.
8. We warrant, represent, undertake and guarantee that
- a) we have full power and authority to issue this Consent Letter, to participate in the CBZB as agreed by us herein and to perform our obligations hereunder;
 - b) the issuance of this Consent Letter, the participation in the CBZB as agreed by us herein, and the performance of our obligations hereunder are and will always be in full compliance with any and all present and future laws and legal regulations applicable to us, including, without limitation, rules on the preservation of capital, and do not and will not at any time constitute a breach of any present or future statutory documents or any of our contractual or other obligation of any kind;
 - c) we will ensure that we will at all times receive adequate compensation for any credit balances transferred from our ORG Pool Accounts to the Master Account (and that the Master Account Holder will receive adequate compensation for any credit balances transferred to our ORG Pool Accounts) as a result of the cash pooling/zero balancing as agreed by us herein, and that we will maintain an adequate financial condition to enable us to participate in the cash pooling/zero balancing in compliance with applicable rules and regulations;
 - d) we will ensure that the Master Account Holder will keep us informed on the terms and conditions of the Cash Pooling services performed by ORG and in particular of the other Pool Account Holders and the Pool Accounts on which these services will be performed.
9. We acknowledge and agree that ORG and ORG does not assume any obligation or liability whatsoever in connection with the Master Account Holder and some or all of the Pool Account Holders belonging to a group of companies, with the issues referred to in Clause 8, or with tax or stamp duty or other legal issues whatsoever. Furthermore we acknowledge and agree that ORG and ORG has not and will not and is under no duty whatsoever to advise us or the Master Account Holder on the effects of the cash pooling, and that we and/or the Master Account Holder have obtained or will obtain and solely rely on the advice of independent qualified tax, legal and other appropriate advisers in this connection.
10. Any costs, expenses or dues (including any stamp duties) which may arise now or in the future in connection with this Consent Letter or the CBZB performed in respect of our CB Pool Accounts hereunder shall be borne by us.
11. Without limitation to clause 10 we acknowledge and agree that ORG shall be liable only for pecuniary damages suffered as a direct result of gross negligence or wilful misconduct on the part of ORG

In the event that ORG is liable for any damage caused by a defect in its IT equipment for which ORG is not responsible, the liability of ORG shall be limited to EUR 20,000.00 per event of damage and affected account holder, but in any case to a maximum total of EUR 400,000.00 for all customers. Under no circumstances can ORG be held liable if the damage was caused by an independent third party or otherwise by an unavoidable event which is due neither to a defect in the condition nor to the malfunctioning of the IT equipment of ORG

12. We agree to deliver to **ORG** and to **ORG** copies of our audited accounts within 6 months after the end of the financial period for which they have been prepared, as well as any information in relation to our business operations and financial position as **ORG** and **ORG** may reasonably request, and we shall promptly inform **ORG** and **ORG** of any material adverse change of our financial condition, including in particular any event or circumstance which may lead to our insolvency.
13. We are entitled to revoke this Consent Letter as of the end of each calendar month by giving you one month's notice in writing, and with immediate effect in case of a material adverse change of our financial condition. We agree that **ORG** may terminate the CBZB services described herein at the end of each calendar month giving one month's written notice and that the Master Account Holder and **ORG** and **ORG** are entitled to an immediate termination of such services at any time for good cause, regarding **ORG** and **ORG** including without limitation, upon the occurrence in respect of the Master Account Holder and/in respect of the CB Pool Accounts or us of any of the events set out below:
- a) a material deterioration of our financial situation, including in particular any event or circumstances which in the reasonable opinion of **ORG** and/or **ORG** may lead to us becoming insolvent;
 - b) any information regarding our situation or that of the Master Account Holder delivered to **ORG** and to **ORG** in connection with the cash pooling services is materially incorrect;
 - c) any violation of any material obligation agreed by us or the Master Account Holder in connection with the cash pooling services which is not remedied within any time period granted by **ORG** or by **ORG** **ORG** or
 - d) the cash pooling services are suspended for lack of sufficient funds and no solution can be agreed with the Master Account Holder within a time period acceptable to **ORG**

14. Changes of this Consent Letter shall be valid only if made in writing. If any provision of this Consent Letter is or becomes invalid or unenforceable, the validity of the other provisions hereof shall not be affected and the invalid or unenforceable provision shall be deemed replaced by a valid and enforceable substitute provision reflecting as closely as possible the purpose of the invalid or unenforceable provision.
15. This Consent Letter shall be governed by **LOC** law.
16. The following business conditions of **ORG** shall apply: General Terms and Conditions of **ORG** **ORG** which are available on **ORG** website: **URL** The Customer confirms that it is familiar with and accepts the **ORG**
17. Any disputes arising in connection with this Agreement shall be submitted to the exclusive jurisdiction of the commercial courts for **LOC** to whose jurisdiction the User Company irrevocably submits. Notwithstanding this jurisdiction clause, **ORG** shall be entitled to submit any dispute to any other court accepting its competence in **LOC** or abroad.

Company name of CB Pool Account Holder

Place

Date

Legally represented by

Signature:

First Name & Surname in capacity as

First Name & Surname in capacity as

Form of Consent Letter E – PBTB
PB Pool Account Holders at Partner Banks

*not required for Pool Accounts held by the Master Account Holder

From a PB Pool Account Holder to **ORG**

Attn: **MISC** to **MISC**

E-Mail-Address: **MISC** to **MISC**

Date: **MISC** to enter a date

Our Account(s) **IBAN:** **MISC** to **MISC**
IBAN: **MISC** to **MISC**
("PB Pool Accounts")
Held with **MISC** to **MISC**
ORG

Dear Sirs,

By sending you this duly signed Consent Letter we hereby explicitly agree and give our consent to **ORG** taking the measures set out below in respect of the CB Pool Accounts:

1. This Consent Letter will become effective not earlier than 10 **LOC** Business Days (meaning any day except Saturday and Sunday on which banks in **LOC** are open for general business) after the receipt by **ORG** of this Consent Letter and PROVIDED that the cooperation agreement between **ORG** and the **ORG** is in place.
2. We hereby agree that **ORG** will perform the following PBTB services in the form of a target balancing in respect of our PB Pool Accounts and the account of **Mother** with **ORG** account IBAN **IBAN Mother** **IBAN Mother** (hereinafter referred to as the "**Master Account**").
3. Not later than 9 a.m. CET on each **MISC** the **ORG** shall send a SWIFT message MT 940 to **ORG** informing **ORG** of the credit or debit balance on each PB Pool Account as of the preceding **MISC**.
The **ORG** may also send to **ORG** a SWIFT message MT942 in respect of each PB Pool Account at a later time on the same day as agreed by **ORG** and the **ORG** from time to time.
4. Upon and under the condition of the timely receipt of the relevant MT 940/942 from the **ORG** **ORG** shall
 - a) in case of a credit balance on any PB Pool Account, transfer any amount equal to such credit balance to the Master Account, and
 - b) in case of a debit balance on any PB Pool Account, transfer an amount equal to such debit balance from the Master Account to the PB Pool Account, PROVIDED that
 - any transfer to any PB Pool Account is conditional upon sufficient funds being available on the Master Account, taking into account any overdraft facility which may be in place in respect of the Master Account, and
 - any transfer to any PB Pool Account is limited to the daily **Maximum Amount** set out below:
 - any transfer to or from any PB Pool Account is limited to an amount at least equal to or exceeding the **minimum transfer amount** set out below , and
 - any transfer from and to a PB Pool Account is subject to the **target balance** set out below

PB Pool Account IBAN		Maximum Amount	Minimum Transfer Amount	Target Balance
MISC	to MISC	EUR MISC amount to enter	EUR MISC to enter amount	EUR MISC amount to enter
MISC	to MISC	EUR MISC amount to enter	EUR MISC to enter amount	EUR MISC amount to enter
MISC	to MISC	EUR MISC amount to enter	EUR MISC to enter amount	EUR MISC amount to enter

5. The PBTB will be made on the day on which the MT 940/942 messages are received by **ORG** if that day is also a **MISC** otherwise on the following **MISC** for value as of that day and NOT taking into account the value dates of the credit and debit balances on the PB Pool Accounts.
6. We acknowledge, agree and confirm that
 - a) the PBTB on the PB Pool Account and the Master Account can only be performed under the condition of the timely receipt by **ORG** of the relevant SWIFT messages from the **ORG** and that any delays in sending such messages may result in the PBTB being performed only on the following **MISC**
MISC
 - b) we shall not allow any debit balance on any PB Pool Account to exceed the amount agreed with the Master Account Holder, and we are aware that there must at all times be sufficient funds available on the Master Account to cover debit balances on the PB Pool Account(s);
 - c) **ORG** and the **ORG** are entitled to immediately stop the PBTB services if the conditions set out in b) above are not fulfilled; and we assumes full liability for, and will hold **ORG** and the **ORG** harmless in respect of any damages or losses incurred by any of them as a result of our non-compliance with the duties undertaken herein;
 - d) if **ORG** determines on any **MISC** that there are no sufficient funds available to cover all debit balances on the Pool Accounts on that day, **ORG** shall be entitled to suspend the cash pooling services and will promptly consult with the Master Account Holder on how to remedy the situation. If no solution acceptable to **ORG** can be agreed, **ORG** shall be entitled to terminate the cash pooling services.
7. We give our explicit consent to **ORG** making available information regarding the PB Pool Accounts to the Master Account Holder, to the attention of persons nominated by the Master Account Holder (which for the avoidance of doubts may be representatives of Pool Account Holders other than us), in any manner **ORG** and the Master Account Holder may agree, including the sending of account statements and other information by mail, fax or electronic means, or the granting of access to such information via the internet. We are aware of the fact that representatives of Pool Account Holders other than us may be nominated as Authorized Persons which may gain access to account information relating to **ORG** Pool Accounts held by us and cash pooling services performed in such respect.
8. We authorize the Master Account Holder to nominate persons for accessing **ORG** internet site **URL** which provides information to the Master Account Holder (and persons nominated by the Master Account Holder) in respect of **ORG** Pool Accounts and the cash pooling services agreed in a cash pooling agreement between **ORG** and the Master Account Holder.
9. We warrant, represent, undertake and guarantee that
 - a) We have full power and authority to issue this Consent Letter, to participate in the PBTB as agreed by us herein and to perform our obligations hereunder;

- b) the issuance of this Consent Letter, the participation in the PBTB services as agreed by us herein, and the performance of our obligations hereunder are and will always be in full compliance with any and all present and future laws and legal regulations applicable to us, including, without limitation, rules on the preservation of capital, and do not and will not at any time constitute a breach of any present or future statutory documents or any of our contractual or other obligation of any kind;
 - c) we will ensure that we will at all times receive adequate compensation for any credit balances transferred from our **ORG** Pool Accounts to the Master Account (and that the Master Account Holder will receive adequate compensation for any credit balances transferred to our **ORG** Pool Accounts) as a result of the cash pooling/zero balancing as agreed by us herein, and that we will maintain an adequate financial condition to enable us to participate in the cash pooling/zero balancing in compliance with applicable rules and regulations;
 - d) we will ensure that the Master Account Holder will keep us informed on the terms and conditions of the Cash Pooling services performed by **ORG** and in particular of the other Pool Account Holders and the Pool Accounts on which these services will be performed.
10. We acknowledge and agree that **ORG** does not assume any obligation or liability whatsoever in connection with the Master Account Holder and some or all of the Pool Account Holders belonging to a group of companies, with the issues referred to in Clause 9, or with tax or stamp duty or other legal issues whatsoever. Furthermore we acknowledge and agree that **ORG** has not and will not and is under no duty whatsoever to advise us or the Master Account Holder on the effects of the cash pooling, and that we and/or the Master Account Holder have obtained or will obtain and solely rely on the advice of independent qualified tax, legal and other appropriate advisers in this connection.
 11. Any costs, expenses or dues (including any stamp duties) which may arise now or in the future in connection with this Consent Letter or the PBTB services performed in respect of our PB Pool Accounts hereunder shall be borne by us.
 12. Without limitation to clause 10 we acknowledge and agree that **ORG** shall be liable only for pecuniary damages suffered as a direct result of gross negligence or wilful misconduct on the part of **ORG**

In the event that **ORG** is liable for any damage caused by a defect in its IT equipment for which **ORG** is not responsible, the liability of **ORG** shall be limited to EUR 20,000.00 per event of damage and affected account holder, but in any case to a maximum total of EUR 400,000.00 for all customers. Under no circumstances can **ORG** be held liable if the damage was caused by an independent third party or otherwise by an unavoidable event which is due neither to a defect in the condition nor to the malfunctioning of the IT equipment of **ORG**
 13. We agree to deliver to **ORG** copies of our audited accounts within 6 months after the end of the financial period for which they have been prepared, as well as such other information in relation to our business operations and financial position as **ORG** may reasonably request, and we shall promptly inform **ORG** of any material adverse change of our financial condition, including in particular any event or circumstance which may lead to our insolvency.
 14. We are entitled to revoke this Consent Letter as of the end of each calendar month by giving you one month's notice in writing, and with immediate effect in case of a material adverse change of our financial condition. We agree that **ORG** may terminate the PBTB services described herein at the end of each calendar month giving one month's written notice and that the Master Account Holder and **ORG** are entitled to an immediate termination of such services at any time for good cause, regarding **ORG** including without limitation, upon the occurrence in respect of the Master Account Holder or us of any of the events set out below:

- a) a material deterioration of our financial situation, including in particular any event or circumstances which in the reasonable opinion of **ORG** may lead to us becoming insolvent;
 - b) any information regarding our situation or that of the Master Account Holder delivered to **ORG** in connection with the cash pooling services is materially incorrect;
 - c) any violation of any material obligation agreed by us or the Master Account Holder in connection with the cash pooling services which is not remedied within any time period granted by **ORG** or
 - d) the cash pooling services are suspended for lack of sufficient funds and no solution can be agreed with the Master Account Holder within a time period acceptable to **ORG**
15. Changes of this Consent Letter shall be valid only if made in writing. If any provision of this Consent Letter is or becomes invalid or unenforceable, the validity of the other provisions hereof shall not be affected and the invalid or unenforceable provision shall be deemed replaced by a valid and enforceable substitute provision reflecting as closely as possible the purpose of the invalid or unenforceable provision.
16. This Consent Letter shall be governed by LOC law.
17. The following business conditions of **ORG** shall apply: General Terms and Conditions of **ORG** **ORG** which are available on **ORG** website: URL The Customer confirms that it is familiar with and accepts the **ORG**
18. Any disputes arising in connection with this Agreement shall be submitted to the exclusive jurisdiction of the commercial courts for **LOC** to whose jurisdiction the User Company irrevocably submits. Notwithstanding this jurisdiction clause, **ORG** shall be entitled to submit any dispute to any other court accepting its competence in LOC or abroad.

Company name of PB Pool Account Holder

Street: MISC to MISC
 No: MISC to MISC
 Postal Code: MISC to MISC
 Town: MISC to MISC
 Country (ISO Code): MISC to MISC

Place

Date

Legally represented by

Signature:

First Name & Surname in capacity as

First Name & Surname in capacity as

